

CC&Rs
Skybrook Homeowners Association, Inc.

Order: GVZ9HXG36
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Drafted by/Mail to: D.R. Bryan, Jr.
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@ 3:48PM

copy
NORTH CAROLINA

MECKLENBURG COUNTY

MASTER DECLARATION
OF COVENANTS, CONDITIONS
AND RESTRICTIONS OF
SKYBROOK

THIS DECLARATION, made this 9 day of September, 1999, by MVC, LLC,
a North Carolina Limited Liability Company, hereinafter referred to as "Declarant".

WITNESSETH:

WHEREAS, Declarant is the owner of certain property located in Huntersville Town-
ship, Mecklenburg County, North Carolina, which property is more particularly described as
follows:

BEING KNOWN AND DESIGNATED as all that property as
shown on a plat entitled SKYBROOK PHASE 1 MAP 2 as
recorded in Plat Book 31, page 991,
Mecklenburg County Registry, reference to which is hereby made
for a more particular description.

WHEREAS, Declarant will convey the said property subject to certain protective
covenants, conditions, restrictions, reservations and charges as hereinafter set forth; and,

WHEREAS, Declarant desires to create thereon a master planned community known
as "SKYBROOK" which will contain a mix of housing types and uses as may be described in
any master land use plan as approved by the appropriate jurisdiction; and

WHEREAS, although Declarant contemplates that separate easements, covenants,
conditions, and restrictions may be imposed in regard to various sections or phases of
SKYBROOK, Declarant desires to impose pursuant hereto easements, covenants, conditions,
and restrictions upon all of SKYBROOK, with the understanding that, at Declarant's option,
certain additional and/or supplementary easements, covenants, conditions, and restrictions
may be imposed as hereinabove stated; and

WHEREAS, Declarant desires to provide for the preservation and enhancement of the
property values, amenities and opportunities in said community and for the maintenance of the
properties and the improvements thereon, and to that end desires to subject the real property
as described above, together with any and all such additions as may hereafter be made thereto,
to the covenants, conditions, restrictions, easements, charges and liens hereinafter set forth,
each and all of which is and are for the benefit of said property and each owner thereof, and

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WHEREAS, Declarant has deemed it desirable for the efficient preservation of the values and amenities in said community to create an agency to which should be delegated and assigned the powers of owning, maintaining and administering certain community properties and facilities, administering and enforcing the master covenants, conditions and restrictions, collecting and disbursing the Association assessments and charges hereinafter created, and promoting the recreation, health, safety and welfare of the owners, residents, and tenants of SKYBROOK; and

WHEREAS, Declarant will incorporate under the laws of the State of North Carolina the Skybrook Homeowners Association, Inc. as a non-profit corporation for the purpose of exercising the functions aforesaid, among others.

NOW, THEREFORE, Declarant hereby declares all of the property as hereinabove-described to be held, sold and conveyed subject to the following easements, restrictions, covenants, and conditions, all of which shall run with the real property, shall be binding on all parties having or acquiring any right, title or interest in the described properties or any part thereof, and shall inure to the benefit of each owner thereof.

ARTICLE I

DEFINITIONS

Section 1. "Association" shall mean and refer to Skybrook Homeowners Association, Inc., a North Carolina non-profit corporation, its successors and assigns.

Section 2. "SKYBROOK" shall mean and refer to that certain real property which is subject to this Master Declaration and any such additions thereto as may hereafter be brought within the jurisdiction of the Association.

Section 3. "Common Area" shall mean and refer to all real property within SKYBROOK which is owned by the Association for the common use and enjoyment of all members.

Section 4. "Limited Common Area" shall mean those lands owned by the Association that serve only a limited number of units and which may include, but specifically are not limited to, driveways and walkways serving townhouse sites, parking spaces, buildings or other areas serving only specified units, and other such similar areas as may be designated by the Declarant.

Section 5. "Lot" shall mean any numbered plot of land as shown on any recorded subdivision map of SKYBROOK, except for Common Area, Limited Common Area, and any dedicated public streets.

Section 6. "Unit" shall mean a building or other structure constructed on a lot, whether for residential, commercial, office, recreational, civic, or other permitted use.

Section 7. "Member" shall mean and refer to every person or entity entitled to membership in the Association as provided in this Master Declaration.

Section 8. "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of a fee simple title or undivided interest in and to any lot which is a part of SKYBROOK, including contract sellers, but excluding those having such interest merely as security for the performance of an obligation.

Section 9. "Declarant" shall mean and refer to MVC, LLC, as well as its successors and assigns; if such successors and assigns should acquire more than one undeveloped lot from the Declarant for the purpose of development.

Section 10. "Board of Directors" shall mean those persons elected or appointed to act collectively as the directors of the Association. *also were the rights transferred*

Section 11. "VA" shall mean Veterans Administration and "HUD" shall mean Department of Housing and Urban Development.

Section 12. "Bylaws" shall mean the bylaws of the Association as they now or hereafter exist.

Section 13. "Master Declaration" shall mean and refer to this Master Declaration of Covenants, Conditions and Restrictions of SKYBROOK, as the same may be amended from time to time as herein provided.

Section 14. "Supplementary Declaration" shall mean and refer to any Supplementary Declaration of Covenants, Conditions, and Restrictions which are specific to certain sections or phases of SKYBROOK as defined therein.

Section 15. "Dwelling Unit" shall mean and refer to a primary residence containing sleeping facilities for one or more persons and a kitchen.

Section 16. "Accessory Dwelling Unit" shall mean and refer to an auxiliary dwelling unit on a lot which contains sleeping facilities for one or more persons and a kitchen, except that no unit contained within any Apartment District shall be considered an accessory dwelling unit.

Section 17. "Apartment District" shall mean and refer to that property, if any, including all improvements constructed or contemplated for construction thereon, designated as such on any recorded plats of SKYBROOK.

Section 18. "Landscape Easement" or "Maintenance Easement" shall mean and refer to those areas so designated on any recorded plats of SKYBROOK which are not Common Areas or Limited Common Areas but within which the Association shall be responsible for the maintenance of landscaping or other improvements contained therein.

ARTICLE II

COMMON AREA AND LIMITED COMMON AREA OWNERSHIP AND MAINTENANCE

Section 1. Owners' Easements of Enjoyment. Every owner shall have a right of enjoyment in and to the Common Area and Limited Common Area, if any, which shall be appurtenant to and shall pass with the title to every lot.

Section 2. Delegation of Use. Any owner may delegate his right of enjoyment of the Common Area and facilities and Limited Common Area and facilities, if any, to the members of his family, his tenants, contract purchasers who reside on the property, or his guests.

Section 3. Rules and Regulations. The Association Board of Directors shall have the power to formulate, publish and enforce reasonable rules and regulations concerning the use and enjoyment of the Common Area and Limited Common Area. Such rules and regulations, along with all policy resolutions and actions taken by the Board of Directors, shall be recorded, and such records shall be maintained in a place reasonably convenient to the members and available to them for inspection during normal business hours.

Section 4. Leasing Common Area and Limited Common Area Facilities. The Board of Directors shall have the power to lease the use of any recreational facility for functions, lessons or other special events, and to allow such lessee to charge admission or other fees for functions, lessons or other special events.

Section 5. Operating Common Area and Limited Common Area Facilities. The Board of Directors shall have the power to limit the number of guests, to regulate behavior and hours of operation, and to curtail any use or uses it deems necessary for either the protection of the facilities or the peace and tranquility of adjoining residents, except that in no case may any Board of Directors so limit, regulate or curtail use of any Limited Common Area so as to deny an owner ingress, egress, and regress and the full use and enjoyment of his property as permitted hereunder.

Section 6. Common Area and Limited Common Area Facilities Admission Fees. The Association may charge reasonable admission and other fees for the use of any Common Area or Limited Common Area recreational facility.

Section 7. Suspensions. The Board of Directors shall have the power to suspend the voting rights and the right to use the Common Area or Limited Common Area facilities of a Class A member, or any person to whom that member has delegated his right of enjoyment, for any period during which any assessment against that member remains unpaid, and, for a period not to exceed thirty (30) days, for any infraction of its published rules and regulations, except that in no case shall a Board of Directors suspend any right to use any Limited Common Area so as to deny an owner ingress, egress and regress and the full use and enjoyment of his property as permitted hereunder.

Section 8. Declarant's Covenant to Convey Title to Common Area and Limited Common Area. Declarant hereby covenants for itself, its successors and assigns, that it will convey fee simple title to the property designated Common Area and Limited Common Area, or portions thereof, to the Association after completion by Declarant of improvements thereon, if any, and upon such time as Declarant determines that the Association is able to maintain same, but, notwithstanding any provision to the contrary herein, such conveyance to the Association shall be made no later than one year following the recordation of the plat upon which such Common Area or Limited Common Area is designated and identified.

Section 9. Mortgaging Common Area and Limited Common Area. The Association shall have the power to borrow money for the purpose of improving the Common Area and facilities, or Limited Common Area and facilities, and, pursuant thereto, to mortgage the Common Area, Limited Common Area or any portion thereof, except that the Association shall not be permitted to mortgage any Limited Common Area which is used to provide ingress, egress and regress to an owner served thereby and which Limited Common Area is essential for the full use and enjoyment of an owner's property as permitted hereunder. The execution of any such permitted mortgage shall require the same approval of the membership

which is required for special assessments for capital improvements as set forth in Article V, Section II, of this Master Declaration. The rights of such mortgagee in said Common Area or Limited Common Area shall not be subordinate to the rights of the members.

Section 10. Common Area and Limited Common Area Dedication or Transfer. The Association shall have the right to dedicate or transfer all of the Common Area or Limited Common Area or any part thereof to any public agency, authority or utility for such purposes and subject to such conditions as may be agreed to by the members. No such dedication or transfer shall be effective unless an instrument signed by members entitled to cast two-thirds (2/3) of the votes of the membership has been recorded, agreeing to such dedication or transfer, and unless written notice of the proposed action has been sent to every member not less than thirty (30) days in advance.

ARTICLE III

LAND USE

Section 1. Restrictions. Each lot and the Common Area and Limited Common Area shall be subject to the restrictions contained in this Master Declaration and any applicable Supplementary Declaration and to those set forth in the by-laws of the Association.

Section 2. Common Area and Limited Common Area Restriction. All Common Area and Limited Common Area recreational facilities and amenities shall be used, improved and devoted exclusively to recreational purposes for the benefit of the owners served thereby.

Section 3. Common Area and Limited Common Area Offensive Use. No immoral, improper, offensive or unlawful use shall be made of SKYBROOK, and any ordinances and regulations of all governmental agencies having jurisdiction thereof shall be observed.

Section 4. Common Area and Limited Common Area Construction or Alteration. No owner shall undertake, cause or allow any alteration or construction in or upon any portion of the Common Area or Limited Common Area unless directed by and with the express written consent Association.

Section 5. Nuisance or Annoying Activity. No obnoxious or offensive activity shall be carried on in or upon SKYBROOK, nor shall anything be done which may be or may become a nuisance or annoyance to any owner or tenant within SKYBROOK.

Section 6. Parking. The Association may regulate the parking of boats, campers, and trailers, and the placing of tents and other such items on the Common Area or Limited Common Area, including the provision of special facilities for which a reasonable charge may be made. No tractors, boats, campers, or trailers shall be regularly parked within the right-of-way of any street in or adjacent to SKYBROOK except as may be expressly permitted by subsequent Supplementary Declaration.

Section 7. Antennae. The erection of antennae or other structures designed for the receipt or transmission of television, radio, or other communication signals on any lot is specifically prohibited without the express written approval of the Architectural Review Board.

Section 8. Signs. No sign of any kind shall be displayed to the public view on any lot, except in the case of a lot containing a permitted commercial or civic use, but in no case without the express written approval of the Architectural Review Board.

The foregoing shall not be construed to prohibit a building contractor from erecting a temporary sign to advertise construction on that lot, nor shall a licensed real estate broker be prohibited from erecting a temporary sign to advertise the property for sale or rent. Neither of such temporary signs shall be larger than six square feet, and each shall be removed immediately upon completion of improvements or the sale or lease of the property. Declarant shall not be prohibited from erecting signage to identify SKYBROOK or any section or phase thereof. No signage of any character shall be constructed, erected, or installed on any lot, Common Area, or Limited Common Area without the prior approval of the Architectural Review Board in accordance with the provisions hereinafter set out.

Section 9. Animals. No animals, livestock, or poultry shall be raised, bred, or kept on any lot, except that dogs, cats, and other household pets may be kept, but no for any commercial purposes, provided that, in the sole judgment of the Board of Directors, such pets do not create a nuisance, such as by noise, odor, damage, or destruction of any property.

Section 10. Waste. No lot shall be used or maintained as a dumping ground for rubbish, trash, or garbage. No waste of any nature shall be kept on any lot except on a temporary basis in sanitary containers. Provided, however, that Declarant or the Association may designate one or more lots as a community yard waste/compost site, which site shall be designated as Common Area.

Section 11. New Construction. Construction of new buildings only shall be permitted on any lot, it being the intent of Declarant to prohibit the moving of any existing building onto any lot. The foregoing shall not prohibit the Architectural Review Board from approving the use of certain pre-existing architectural components should said Board determine, in its sole discretion, that such components are in keeping with and do not impact negatively on the general development scheme and appearance of SKYBROOK.

Section 12. Temporary Structures. No structure of a temporary character, such as a trailer, basement, tent, or shack, but in any event as such shall be defined in the discretion of the Architectural Review Board, shall be used at any time as a dwelling unit.

Section 13. Alleys. All alleys designated on recorded plats as "Private Access, Utility & Drainage Easement" shall be used primarily for access to the lots served thereby and for the installation and maintenance of certain dry utilities. All such private alleys shall function as and be maintained in the same manner as Limited Common Areas, whether or not such designation shall appear on the recorded plat of same.

Section 14. Refuse and Recyclables Collection. Collection of refuse and recyclables shall, except as hereinbelow provided, be via curbside or alley pickup as appropriate and/or as approved by the governing municipality. Some lots may be served by private or shared dumpsters, compactors, or other such receptacles, in which case curbside or alley pickup shall not apply. All rollcars, bins, and other receptacles shall be stored on a lot in an area suitably screened from public view as determined by the Architectural Review Board.

Section 15. Diligent Construction. All construction, landscaping, or other work which has been commenced on any lot must be continued with reasonable diligence to completion. No partially completed house, garage, building, or other improvement shall be allowed to exist on any lot, except during such reasonable period as is necessary for the completion of same.

Section 16. Lot Subdivision and Consolidation. No lot shown on any recorded plat of SKYBROOK may be subdivided by sale, lease, or otherwise without prior written consent of Declarant. Lot consolidation may be permitted by Declarant in its sole discretion.

Section 17. Utilities. All water, gas, sewer, electrical, telephone, television, and other utility lines, and all connections between the main utility line and the unit or other structures on the lot, shall be located underground and concealed so as not to be visible.

Section 18. Outdoor Structures. No outside clotheslines, tree houses, playhouses, swing sets and other play equipment, gazebos and other yard decorations, refuse/recyclables receptacles, transformers, or air conditioning and other mechanical equipment shall be erected or allowed to remain on any lot unless concealed behind approved screening or integrated into the building design so as to be inconspicuous, or as otherwise approved by the Architectural Review Board as compatible and harmonious with the surroundings. For example, any permitted solar equipment shall be roof-mounted on the rear of the structure, flush with the roof surface, with all appurtenances recessed into the structure's attic. The provisions of this section shall not be construed to prohibit Declarant from establishing certain Common Areas or Limited Areas as neighborhood parks or playgrounds with appropriate equipment, structures, and other improvements installed thereon.

Section 19. Window Screens. Window screens are specifically prohibited on all windows facing any public street within SKYBROOK without prior written approval the Architectural Review Board.

Section 20. Recreational Facilities. No pool, tennis court, or other recreational facility shall be constructed on any lot without the prior written approval of Declarant.

Section 21. Governmental Approval. Nothing contained herein shall be deemed to be a waiver of any applicable governmental requirements or restrictions relative to the constructions of improvements on and/or the use of any lot.

ARTICLE IV

ARCHITECTURAL REVIEW

Section 1. Architectural Review Board. An Architectural Review Board ("ARB") consisting of at least two (2) persons, who are not except as provided hereinbelow required to be members of the Association, shall be appointed by Declarant at or prior to the conveyance of the first lot. At such time as Declarant conveys its last remaining lot, the ARB shall be appointed by the Board of Directors of the Association. Declarant or Board of Directors of the Association, as appropriate, may elect at its option to increase the number of members of the ARB from time to time. In the event of the death or resignation of any ARB member, the authority which appointed that member shall designate and appoint a successor to serve the remainder of the departing member's term. Members of the ARB may be removed or replaced at any time, with or without cause and without prior notice, by the controlling authority (meaning the Declarant or Board of Directors of the Association, as appropriate). No member of the ARB shall be liable for claims, causes of action, or damages, except where occasioned by such member's negligence or wilful misconduct, arising out of services performed pursuant to this Master Declaration.

Section 2. Plan or Design Approval. No site preparation or initial construction, erection, or installation of any improvements, or any changes thereto, including but not limited to, dwelling or other units, outbuildings, garages, fences, walls, signs, excavation, or changes in grades shall be undertaken on any lot unless the plans and specifications therefor, showing the nature, kind, shape, height, materials and location of the proposed improvements shall have been submitted to the ARB and expressly approved in writing. No subsequent alteration

or modification of any existing improvements or construction, erection, or installation of additional improvements may be undertaken or allowed to remain on any lot without the review and express written approval of the ARB. The ARB may refuse approval of any plans, in whole or in part, for any reason, including purely aesthetic reasons, which shall in the sole and uncontrolled discretion of the ARB be deemed sufficient. The ARB shall establish minimum requirements for submission for approval, but shall have the authority to request such additional information at it may determine is necessary in order to make its decision. All rules, regulations, procedures, restrictions, and standards promulgated by the ARB shall supplement this Master Declaration and any Supplemental Declaration, and are incorporated herein by reference. The ARB shall at all times endeavor to be fair, reasonable, and uniform in its application of such rules, regulations, procedures, restrictions, and standards, and shall be responsive to technological advances and general changes in architecture, construction, and related conditions, and shall use its best efforts to balance the equities between matters of taste and design and the use of private property.

Section 3. Effect of Failure to Approve or Disapprove. In the event that the ARB fails to approve or disapprove the design of any proposed improvements within thirty (30) days after plans and specifications for same have been submitted to and received by it, approval will not be required and the provisions of this Article will be deemed to have been complied with fully; provided, however, that the plans and specifications required to be submitted shall not be deemed to have been received by the ARB if they contain erroneous data or fail to present adequate information upon which the ARB can base its decision.

Section 4. Right of Inspection. The ARB shall have the right, at its election, to enter upon any of the lots during preparation, construction, erection or installation of any improvements in order to determine that such work is in accordance with the approved plans and specifications. The ARB is authorized and empowered to inspect and review any and all aspects of the construction of any improvements on any lot which may, in its reasonable opinion, adversely affect the living enjoyment of other owners or the general value and appearance of SKYBROOK. If any improvement is found to be in violation of the provisions contained herein, the ARB may require that owner to restore such non-conforming or unapproved improvements to the condition existing prior to such construction, including without limitation, the demolition and removal thereof. The ARB may undertake such demolition, removal, and/or restoration itself and shall then levy the cost thereof as a special assessment against the subject lot.

Section 5. Exterior Maintenance. The exterior maintenance of the unit and other improvements constructed upon the lot shall be the duty of the owner of such unit or lot, except as specifically provided otherwise in this Master Declaration or any Supplementary Declaration, and shall not normally be interfered with by the Association. The Owner shall be responsible for the maintenance, repair or replacement of any defective plumbing, water heaters, heating equipment, air conditioning equipment, lighting fixtures, and all other equipment and improvements located on his lot. If, however, in the opinion of the Association, any owner shall fail to maintain any unit, lot or equipment as specified in a reasonably neat and orderly manner, or shall fail to keep same in a state of repair so as not to be unsightly, the Association, at its discretion and after ten (10) days written notice to such owner, may enter upon and make or cause to be made any necessary repairs and maintenance to such unit or lot, including but not limited to removal of trash, cutting of grass, pruning of shrubbery, and seeding for erosion control. The Association, or its agents shall have an easement for the accomplishment of the foregoing. Any costs incurred by the Association in the making of such repairs and maintenance, plus a service charge in the amount of twenty (20%) percent of such costs, shall be added to and become a part of such other assessments to which the unit or lot is subject.

ARTICLE V

MEMBERSHIP AND VOTING RIGHTS IN THE ASSOCIATION:
ANNUAL AND SPECIAL ASSESSMENTS

Section 1. Membership in the Association. Each and every owner of a lot, including contract sellers, shall be a member of the Association. The foregoing does not include persons or entities who hold an interest merely as security for the performance of an obligation. Membership shall be appurtenant to and shall not be separated from any lot which is subject to assessment by the Association. The Board of Directors may make reasonable rules relating to the proof of ownership of a lot in SKYBROOK. In addition, for so long as Declarant owns any part of SKYBROOK, Declarant shall also be a member of the Association. Further, the owner of any Apartment District shall be a member of the Association and shall be subject to the same regulations and charges as all other owners relative to membership in the Association.

Section 2. Right of Declarant to Representation on Board of Directors of the Association. Notwithstanding anything contained herein to the contrary, until December 31, 2020, or until seventy-five percent (75%) of the total number of permitted dwelling units lots to be contained within SKYBROOK have been conveyed by the builder of such dwelling units to homeowners, Declarant or its express assignee shall have the right to designate a two-thirds (2/3) majority of the Board of Directors of the Association. Whenever Declarant shall be entitled to designate and select any person(s) to serve on the Board of Directors, the manner in which such person(s) shall be designated shall be as provided in the Supplementary Declaration, Articles of Incorporation, and/or Bylaws for the Association. Declarant shall have the right to remove any person(s) so selected by it and to replace such person(s) so removed with another person(s) selected as herein provided. Any Director designated by Declarant need not be an owner. Declarant, as a member of the Association, or any representative of Declarant serving on a Board of Directors, shall not be required to disqualify himself from the vote upon or entrance into any contract or matter between Declarant and the Association in which Declarant may have a pecuniary or other interest.

Section 3. Association Member Classes and Voting Rights. The Association shall have two (2) classes of voting members:

Class A. Class A members shall be each owner and shall not include Declarant. Class A members shall be entitled to one (1) vote for each lot owned. The vote for each Class A member shall be exercised as that member's representatives among themselves determine, but in no event shall more than one (1) vote be cast with respect to any Class A member and no fractional vote may be cast with respect to same.

Class B. The Class B member shall be the Declarant. The Class B member shall be entitled to seven (7) votes for each lot in which it holds the required ownership interest and seven (7) votes for each full \$50,000 of assessed valuation of all undeveloped acreage subject to this Declaration, as such assessed valuation is determined by the appropriate governmental authority for ad valorem tax purposes as of January 1 of the applicable year; provided, however, that the Class B membership shall cease and be converted to Class A membership on the happening of the earlier of the following events:

(a) The total votes outstanding in Class A membership equals the total votes outstanding in Class B membership; provided, however, that the Class B membership shall be reinstated with all the rights, privileges, responsibilities and voting power if, after the

conversion of Class B membership to Class A membership as hereinabove provided, additional land is annexed to the properties without the assent of the members on account of development of such additional land by Declarant, all in accordance with Article VII, Section 2, of this Master Declaration; or

(b) December 31, 2020.

Section 4. Voting, Quorum, and Notice Requirements for the Association. Except as may be otherwise specifically set forth in this Master Declaration or in the Articles of Incorporation and/or Bylaws of the Association, the vote of a simple majority of the aggregate votes entitled to be cast by all classes of members of the Association, present or represented by legitimate proxy at a legally constituted meeting at which a quorum is present, shall be the act of the Association. The number of votes present at an Association meeting that is properly called and that will constitute a quorum shall be as set forth herein or in the Association Bylaws.

Section 5. Voting Rights Suspension. The right of any Class A member to vote may be suspended by the Board of Directors of the Association for just cause pursuant to its rules and regulations and according to the provisions of Article II, Section 7, of this Master Declaration.

Section 6. Covenant for Assessments. The Declarant, for each portion or parcel of SKYBROOK owned by it, hereby covenants, and every other owner of any lot covered by this Master Declaration, including the owner of any Apartment District, by acceptance of a deed therefor, whether or not expressed in any such deed or other covenant, is deemed to covenant and agree to pay to the Association, each of which shall be fixed, established, and collected from time to time as hereinafter provided:

- (a) annual assessments or charges;
- (b) special assessments for capital improvements and/or other purposes; and,
- (c) individual special assessments levied against individual owners to reimburse the Association for extra costs for maintenance or repairs as set out in Article V, Section 12, of this Master Declaration.

Each such assessment on a lot, together with interest thereon and the costs of collection thereof, including attorney's fees, as hereinafter provided, shall be a charge on the land and shall be a continuing lien upon the property against which the assessment is made. Each such assessment, together with interest, costs, and reasonable attorney's fees incurred by the Association in collecting delinquent assessments, shall also be the personal obligation of the person or entity who was the owner of such lot at the time the assessment became due. No owner may escape liability for any assessment through nonuse of the Common Area or Limited Common Area or through abandonment of his property. The obligation of an owner for delinquent assessments shall pass to his successors or assigns in title unless expressly excused by the Association, except that such personal obligation shall not pass to mortgagees or trustees under Deeds of Trust of such successor owner or assignee.

Section 7. Purpose of Association Assessments. The assessments levied by the Association shall be used exclusively for the purpose of promoting the beautification of SKYBROOK, the recreation, health, safety and welfare of the owners in SKYBROOK, the enforcement of this Master Declaration, any Supplementary Declaration, and the rules of the Association, and, in particular, the improvement and maintenance of the services and facilities of the Common Area, Limited Common Area, Landscape Easements, and Maintenance Easements. Anything contained in this Master Declaration to the contrary notwithstanding, until such time as the Class B membership shall cease and be converted to Class A membership, any costs associated with the initial construction and installation of improve-

ments not provided by Declarant which are located in the Common Area, Limited Common Area, Landscape Easements, or Maintenance Easements shall be incurred by the Association only after such initial improvements costs are approved by the majority of the votes of Class A members present or represented by proxy at a duly constituted meeting of Class A members at which a quorum is present.

Section 8. Annual Assessments. Except as hereinafter limited, each owner shall pay to the Association the annual assessment pursuant to this Master Declaration. On or before December 31 of each year, the Board of Directors of the Association shall set the amount of the annual assessment applicable to each Assessment Class as hereinafter defined for the ensuing year, taking into consideration, among other things, the then current development and/or maintenance costs to be borne by the Association, estimated increases in development and/or maintenance costs, and the future needs of the Association, which may include a reasonable contingency fund. Written notice of the Association assessment shall be provided to each owner no later than February 15 of the ensuing year. The assessment(s) as applicable to each owner shall be as follows:

(1) Assessment Class 1: All owners of single-family detached homes for which no exterior maintenance is provided by the Association are required to pay Class 1 assessments.

(2) Assessment Class 2: All owners of single-family detached homes for which exterior maintenance is provided by the Association are required to pay Class 2 assessments.

(3) Assessment Class 3: All owners of attached townhomes are required to pay Class 3 assessments.

(4) Alley Assessment: All owners of lots which are served by private alleys are required to pay Alley Assessments in addition to the appropriate Class 1, 2, or 3 assessments, but such Alley Assessments shall be payable only in those years or at such other times as the Board of Directors determines that the private alleys are in need of repair, maintenance, or improvement, at which time said Board of Directors will fix the Alley Assessment amount and levy same against the affected owners.

(5) Apartment District Assessment. The Board of Directors of the Association shall fix the amount of the assessment due from the owner of any Apartment District in accordance with the provisions of this section at the time such assessment becomes due on account of the existence or creation of an Apartment District.

Beginning with assessment year 2002 and thereafter, the maximum annual assessment shall be established by the Board of Directors and may be increased without approval of the members by an amount not to exceed fifteen percent (15%) of the maximum annual assessment allowable in the year immediately preceeding. The maximum annual assessment may be increased without limit by the affirmative vote of two-thirds (2/3) of each class of members who are voting in person or by proxy at a meeting duly called for this purpose. The Board of Directors may at any time fix the annual assessment at an amount not exceeding the maximum.

It is specifically understood that, beginning with assessment year 2001, builder-owners who purchase a lot on which to construct a dwelling unit for sale and Declarant shall be required to pay to the Association an annual assessment equal to 25% of the then-current assessment appropriate to each lot owned as of January 1 of that year.

Section 9. Special Assessment. In addition to the annual assessments as authorized hereinabove, the Association may levy one or more special assessments applicable to that year only for the purpose of defraying the costs of construction or reconstruction, unexpected repair or replacement of any improvements located upon their respective Common Areas, Limited Common Areas, Landscape Easements, or Maintenance Easements, including the necessary fixtures and personal property related thereto, provided that any such special assessment shall have the assent of two-thirds (2/3) of the votes of each class of the members who are voting in person or by proxy at a meeting duly called for this purpose, with notice of said meeting having been sent to all members at least thirty (30) days in advance. Any such special assessment shall be assessed against the appropriate owners in the same manner and according to the same allocation formula as the regular annual assessments.

Section 10. Special Individual Assessments. The Association may levy special assessments against individual owners for reimbursement to the Association for repairs to the Common Areas, Limited Common Areas, Landscape Easements, or Maintenance Easements or any improvements thereto which are occasioned by the willful or negligent acts of such owner(s) and not the result of ordinary wear and tear, or for payment of fines, penalties, or other charges imposed against an owner relative to such owner's failure to comply with the terms of this Master Declaration, any Supplementary Declaration, and/or the Association Articles of Incorporation and/or Bylaws, including without limitation, reimbursement to the Master Association for expenses incurred in connection with the enforcement of the provisions of Article VI of this Master Declaration.

Section 11. Initial Contributions. Each owner of a completed dwelling unit, except the owner of any Apartment District and as further limited hereinbelow, shall contribute to the Association the sum of \$50.00 payable at the closing of such purchase, which initial contribution shall be deposited into the Association's regular operating account. The owner of any Apartment District shall, at the time of the issuance of a Certificate of Occupancy by the governing jurisdiction for a building or buildings, pay to the Association the sum of \$5.00 for each dwelling unit contained therein as an initial contribution. Further, such initial contributions shall not be due from builder-owners who purchase a lot on which to construct a dwelling unit for sale. Initial contributions shall not be considered to be advance payment of annual assessments, special assessments, or special individual assessments. Initial contributions are payable by the initial purchaser as well as all subsequent purchasers of a given dwelling unit.

Section 12. Date of Commencement of Annual Assessments; Due Dates. The annual assessments as herein provided shall commence with the year 2001 and shall continue thereafter from year to year. Annual assessments shall be due and payable on or before the 1st day of March of each and every year. Any special assessments or special individual assessments shall be payable in accordance with the Board of Director's resolution authorizing same. Beginning January 1, 2001, each owner shall be liable for the payment of all assessments, beginning with the annual assessment due for the year in which the closing of the purchase of his dwelling unit occurs, which amount for year one shall be pro-rated for any partial year from the date of such closing through year-end. Nothing contained herein shall prohibit any contract seller (except for any builder-owner) from arranging with his contract purchaser for the pro-rata reimbursement of any pre-paid assessments, but Association shall not be liable to any party for such reimbursement. The Association shall, upon demand, furnish a written certificate setting forth the status of assessments applicable to a specified lot, and may make a reasonable charge for the issuance of such certificate. Such certificate shall be conclusive evidence of the status of the payment of assessments.

Section 13. Remedies for Non-Payment of Assessments. Any assessment which is not paid when due shall be delinquent. If the assessment is not paid within thirty (30) days of the specified due date, the assessment shall bear interest from the date of delinquency at the rate of eighteen (18%) percent per annum. The Association may bring an action at law against the owner personally obligated to pay such assessment or may foreclose the lien created herein in the same manner prescribed by the laws of the State of North Carolina for foreclosure of Deeds of Trust. Costs, interest, and reasonable attorney's fees as hereinabove provided shall be added to the amount of such assessment. No owner may waive or otherwise escape liability for assessments by the nonuse of the Common Area or Limited Common Area or the abandonment of his lot. In the event of such action at law or in the event of the entrance of judgment against the owner in favor of the Association, the Association shall be further empowered to execute on such judgment in such manner and to the extent permitted by the laws of the State of North Carolina.

Section 14. Subordination of the Lien to Mortgages and Ad Valorem Taxes. The lien of the assessments provided for herein shall be subordinate to the lien of any first mortgage Deed of Trust and to ad valorem taxes. Sale or transfer of any lot shall not affect the assessment lien; provided, however, that the sale or transfer of any lot pursuant to an order of foreclosure of a mortgage thereon, or any procedure in lieu of foreclosure, shall extinguish the lien of assessments as to payments which became due prior to such sale or transfer. No sale or transfer shall relieve a lot from liability or liens arising from assessments which become due thereafter.

Section 15. Exempt Property. Any portion of SKYBROOK dedicated to and accepted by a local public authority shall be exempt from assessments herein created; provided, however, that no land or improvements devoted to any private use as permitted hereunder shall be exempt from assessments.

Section 16. Annual Budget. By majority vote of the Directors, the Association Board of Directors shall adopt an annual budget for the subsequent operational year which shall provide for the allocation of expenses in such manner that the obligations imposed by this Master Declaration and by any and all Supplementary Declarations will be met, subject, however, to the limitations on amounts of assessments and provisions regarding the increase in same as contained in this Master Declaration, any Supplementary Declaration, and/or the by-laws of the Association.

Section 17. Additional Associations. Nothing contained herein shall prohibit or affect Declarant's rights to establish one or more additional associations to govern a specific section or sections of SKYBROOK. For example, Declarant may elect to establish an association to oversee the Market District. In the event any separate association is established, the annual assessment appropriate to the owners of the lots within that section shall be remitted to that separate association rather than to Skybrook Homeowners Association, Inc.

Section 18. Right to Impose Fines for Violations. The Association shall, after first having provided the appropriate owner with ten (10) day's written notice of its intent to do same, have the right to impose reasonable monetary fines for the violation of any provision of this Master Declaration or any Supplementary Declaration, which fine(s) shall constitute a lien against the violator's property.

Section 1. Walks, Drives, Parking Areas, Utilities, Etc. SKYBROOK, including all lots, Common Areas, Limited Common Areas, Landscape Easements, and Maintenance Easements, shall be subject to such easements for driveways, walkways, parking areas, water lines, sanitary sewers, storm drainage, gas lines, telephone lines, electric power lines, television antennae lines, any other utilities, ingress, egress, regress, and otherwise, as shall be established by the Declarant or by its predecessors in title prior to the conveyance of the Common Areas and Limited Common Areas to the Association. After such conveyance, the Association shall have the power and authority to grant and establish further easements upon, over, under, and across the Common Areas and Limited Common Areas.

Section 2. Landscape Easements; Maintenance Easements. As shown on the recorded or to be recorded plats of SKYBROOK, certain areas which are not Common Areas or Limited Common Areas may be designated as Landscape Easements or Maintenance Easements, including without limitation all trees, grass and other landscaping contained within the tree lawns behind the curbs, even though such tree lawns lie within the public rights-of-way of the adjacent streets. Declarant hereby reserves for itself, its successors and assigns, and then, without further assignment required, for the Association, an easement over, under, and across each of those areas so designated for the purposes of the installation, operation, maintenance, and repair of improvements located or to be located thereon, including all personal property which may be associated with such improvements, except for any such improvements or personal property for which a public utility or other public authority shall be responsible.

Section 3. Sign Easement. Further, some lots are subject to a "Sign Easement" as shown on the recorded plat, which easement is created by Declarant for the purpose of construction and maintenance of a neighborhood identification sign. Declarant hereby reserves unto itself, its successors and assigns, and thereafter to Skybrook Homeowners Association, Inc., the free and full right of ingress, egress, and regress over and across those areas subject to said "Sign Easement" and the right from time to time to remove any and all obstructions that, in the opinion of Declarant, its successors and assigns, and thereafter Skybrook Homeowners Association, Inc., may injure, endanger, or interfere with the maintenance, visibility, or appearance of the sign. Declarant, and thereafter Skybrook Homeowners Association, Inc., shall be solely responsible for any and all grassing, planting, or other landscaping introduced within the boundaries of said "Sign Easement", including the regular maintenance thereof, and the owner(s) of the lot(s) subject to such easement shall at no time attempt to add to, remove, or interfere in any manner whatsoever with such grassing, planting, and/or landscaping. The owner(s) of such lot(s) shall not locate any structure of any nature within the boundaries of said "Sign Easement" without the express written permission of Declarant. Owner(s) shall otherwise retain all rights to use the property subject to said "Sign Easement" except as set forth hereinabove.

Section 4. Buffer Areas. Areas within certain lots are designated as buffer areas, Landscape Buffer, or Thoroughfare Buffer. The topography or any landscaping within any such buffer shall not be disturbed or altered without the prior written consent of Declarant. No walks or paths shall be installed within a buffer area without the prior written consent of Declarant. No buffer area shall be fenced, screened, or otherwise enclosed. A buffer area shall be that portion of any lot within 50 feet of any property line adjoining a lake or pond, or Skybrook Golf Club, or as may otherwise be shown on the recorded plat.

Section 5. Lake Easement. Declarant hereby reserves for itself, the owner/operator of Skybrook Golf Club, and the Association, their respective heirs, successors, assigns, designees, agents, and employees, the nonexclusive right to enter onto any lake or other body of water which provides the source of water for irrigation of Skybrook Golf Club properties, or any Common Areas or Limited Common Areas, or any other facility permitted to take and receive water for irrigation purposes from such lake or other body of water in order to construct, maintain, or repair said lake or other body of water and all structures and other equipment required for those permitted purposes, including but not limited to the free and full right of ingress, egress and regress necessary to access such lake or other body of water.

Section 6. Golf Course Easement. Each and every lot and all Common Areas and Limited Common Areas shall be burdened with an easement permitting golf balls to unintentionally come onto such areas, and for agents and employees of Skybrook Golf Club, including golfers, at reasonable times and in a reasonable manner to enter onto same in order to retrieve such errant golf balls and to maintain, operate and repair Skybrook Golf club and its related facilities and amenities. Provided, however, that no such entry shall be permitted onto a fenced or walled area without the appropriate owner's permission. This easement shall not be construed so as to relieve any golfers of liability for any damage caused by errant golf balls, nor shall any liability for same be held by or imputed to Declarant or the Association or the owner of Skybrook Golf Club.

Section 7. Encroachments; Declarant's Easement to Correct Drainage. All lots, Common Areas, and Limited Common Areas shall be subject to easements for the encroachment of initial improvements constructed on adjacent lots by Declarant to the extent that such initial improvements actually encroach, including but not limited to, overhanging eaves, gutters, downspouts, exterior storage rooms, bay windows, steps, and walls. If such encroachment is a result of settling or shifting of any building or of any permissible repair, construction, reconstruction, or alteration, there is hereby created a valid easement for such encroachment for the maintenance of same. For a period of twenty-five (25) years from the date of the first conveyance of a lot in any parcel, phase, or section of SKYBROOK, Declarant reserves a blanket easement on, over, and under the ground within that parcel, phase, or section for the maintenance and correction of drainage or surface water in order to maintain reasonable standards of health, safety, and appearance. Such easement expressly includes the right to cut any trees, bushes, or shrubbery, make any gradings of the soil, or take any other similar action as may be reasonably necessary. After such action has been completed, Declarant shall restore the affected area to its original condition to the extent practicable. Declarant shall give reasonable notice of its intent to take such action to the affected owner. These rights, easements and reservations are assignable by the Declarant.

Section 8. Private Alleys and Limited Common Areas. Private alleys and other Limited Common Areas may be created to serve the needs of units thereon. Such private alleys and other Limited Common Areas shall be subject to an easement in favor of every lot to which they are adjacent or which they are designed to serve and shall be deemed appurtenant to each lot whereby the owner of such lot shall be entitled to use them as a means of ingress, egress, and regress and for such other uses as may have been designated.

Section 9. Easement to the Governmental Authority. An easement is hereby established for municipal, state or other public utilities serving the area, and for their agents and employees, over all Common Areas and Limited Common Areas hereby or hereafter established for setting, removing and reading utility meters, maintaining or replacing utility or drainage connections, collection of trash and recyclables, and acting with other purposes consistent with the public safety and welfare, including without limitation, police, fire, and rescue protection.

ARTICLE VII

ANNEXATION OF ADDITIONAL PROPERTIES

Section 1. Annexation by Association. Except as provided in Section 2 of this Article VII, additional lands may be annexed to SKYBROOK by the Association only if two-thirds (2/3) of the aggregate votes in each class of members are cast in favor of such annexation. In this particular case, the Class B member shall be entitled to only one vote for each unit or lot owned and only one vote for each full \$50,000 of assessed valuation (as defined in Article V, Section 3, of this Master Declaration) of the undeveloped acreage subject to this Master Declaration. Written notice of the meeting duly called for this purpose shall be given to all members at least thirty (30) days in advance of the meeting date. The presence at such meeting of the members or authorized proxies entitled to cast, in the aggregate, sixty (60%) percent of the votes shall constitute a quorum. If the required quorum is not met, another meeting shall be called within sixty (60) days thereafter, subject to the same rules of notice as hereinabove set forth, with the required quorum at that meeting being one-half (1/2) of that required for the first meeting. If a quorum is present and a majority of votes is cast in favor of annexation, but the majority is less than the two-thirds (2/3) majority required for approval and it appears that the required two-thirds (2/3) majority would be met if the members not present or voting by proxy would assent to the annexation, the members not present or voting by proxy may assent to or dissent from the proposed annexation in writing within one hundred twenty (120) days following the meeting date. At that time, if the number of votes actually cast at the meeting in favor of annexation together with the votes deemed to have been cast by members assenting to same shall constitute the required two-thirds (2/3) majority, the annexation shall stand approved.

Section 2. Annexation by Declarant. Declarant may annex additional land to SKYBROOK in the following manner:

(a) If within twenty (20) years of the date of incorporation of the Association Declarant should develop additional land within or contiguous to any tract(s) approved for development by the appropriate governing jurisdiction as of the date hereof, or submitted to VA or HUD, such additional land may be annexed to SKYBROOK without the assent of the members.

(b) If within twenty (20) years of the date of incorporation of the Association Declarant should develop from time to time an additional tract or tracts other than as described in subsection 2(a) above but contiguous to such boundaries, such additional land may be annexed to SKYBROOK without the assent of the members; provided, however, that such annexation shall be approved by the appropriate governing jurisdiction if so required.

(c) Declarant may annex to SKYBROOK additional land as described in subsections 2(a) and 2(b) above by the recordation in Mecklenburg and/or Cabarrus County Registry of a Supplementary Declaration describing the land to be annexed and incorporating the provisions of this Master Declaration. The additional land will be deemed annexed to SKYBROOK as of the date of such recordation and no other action or consent by the members shall be required.

(d) Subsequent to recordation of such Supplementary Declaration, Declarant shall deliver to the Association a deed conveying any Common Area or Limited Common Area on the annexed land to the Association, as appropriate.

ARTICLE VIII

GENERAL PROVISIONS

Section 1. Enforcement. The Association or any owner shall have the right to enforce, by any proceeding at law or in equity, including without limitation the right to impose a fine or fines against the offending owner, all restrictions, conditions, covenants, reservations, liens, and charges now or hereafter imposed by this Master Declaration. Failure by the Association or any owner to enforce any covenant or restriction herein contained shall in no way be deemed a waiver of the right to do so thereafter.

Section 2. Rights of Lenders and Insurers of First Mortgages. Lenders and insurers of first mortgages shall have the following rights:

(a) In the event that any owner is in default in any obligation hereunder which remains uncured for a period of sixty (60) days, every lender who is a first mortgagee as to the lot of the defaulting owner, and every insurer of any such first mortgage, shall be notified immediately of such default, provided that such lender and/or insurer shall have given written certified notice to the Association that it is a mortgagee or insurer as to the lot of such owner and shall have requested the notice of default as herein set forth.

(b) Every first mortgagee and/or insurer of the first mortgage of a lot shall have the right to examine the books of the Association during regular business hours.

Section 3. Covenant by Owners. Each and every owner acknowledges by acceptance of a deed to any property encumbered by this Master Declaration and any Supplementary Declaration that Skybrook is a master planned community, the development of which is likely to extend over numerous years, and covenants hereby not to protest, challenge or otherwise object to changes in permitted uses or density of said property, including any property annexed by Declarant under the terms of this Master Declaration, or changes in any Master Plan as it relates to same.

Section 4. Duration of Covenants: Amendment by Owners. The covenants, conditions and restrictions of this Master Declaration shall run with and bind the land and shall inure to the benefit of and be enforceable by the Association or the owner of any lot subject hereto, their respective legal representatives, heirs, successors and assigns, for a term of forty (40) years from the date of recordation of this Master Declaration, after which time said covenants shall be automatically extended for successive periods of ten (10) years. This Master Declaration may be amended during the first forty (40) year period or thereafter by an instrument executed by not less than seventy-five (75%) percent of the members of the Association; provided, however, that the Board of Directors of the Association may amend this Master Declaration to correct any obvious error or inconsistency in drafting, typing or reproduction, or to make any amendment requested by VA, HUD or Federal National Mortgage Association, without action or consent of the members, and such amendment shall be certified as an official act of the Association Board of Directors and recorded in Mecklenburg and/or Cabarrus County Registry.

Section 4. Withdrawal of Property: Declarant's Consent to Amendment. Notwithstanding anything contained hereinabove, the written consent of Declarant to any amendment or modification to this Master Declaration or to any Supplementary Declaration must be obtained for any such amendment or modification made prior to December 31, 2020. Further, Declarant reserves the right, for so long as it has the right to annex additional property as herein provided, to withdraw any unimproved portions of the property to which encumbered

by this Master Declaration and any Supplementary Declaration from coverage by same, provided such withdrawal does not reduce the total number of units covered by such Master Declaration or Supplementary Declaration by more than 10%, and to amend or modify the Master or Supplementary Declaration as necessary to effect such withdrawal. Such amendment or modification shall not require the consent of any other owner.

Section 5. Amendment to Achieve Tax-Exempt Status. Declarant, for so long as it controls the Board of Directors of the Association, and thereafter the Association Board of Directors, may amend this Master Declaration as shall be necessary in its opinion, without the consent of any owner and with the consent of VA or HUD, to qualify the Association, or SKYBROOK, or any portion thereof, for tax-exempt status. Such amendment shall become effective at the time of its recordation in the Mecklenburg and/or Cabarrus County Registry.

Section 6. Certification and Recordation of Amendment. Any instrument amending this Master Declaration, other than an amendment to correct an obvious error or inconsistency in drafting, typing or reproduction, shall be delivered, following approval by the members, to the Association Board of Directors. Thereupon, the Association Board of Directors shall, within thirty (30) days of delivery, do the following:

(a) Reasonably assure itself that the amendment has been duly approved by the members as provided in Section 3 of this Article. For this purpose, the Board may rely on its roster of members without causing any title to be searched;

(b) Attach to the amendment a certification as to its validity which shall be executed by the Association; and,

(c) Cause the instrument to be recorded in the Mecklenburg and/or Cabarrus County Registry.

Section 7. Effect and Validity of Amendments. All amendments shall be effective from the date of recordation in the Wake County Registry. Upon such recordation and certification by the Association Board of Directors, it shall be conclusively presumed that such instrument constitutes a valid amendment as to the owners of all lots in SKYBROOK.

Section 8. Exchange of Common Area or Limited Common Area. Notwithstanding any provision contained herein to the contrary, it is expressly provided that the Association may convey to Declarant, as well as to any other member, for fair market value, any portion of the Common Area or Limited Common Area previously conveyed to the Association as provided in the Articles of Incorporation of the Association. If required, any such conveyance shall be subject to the prior approval of VA or HUD. Upon such conveyance, the area conveyed shall cease to be subject to the provisions of this Master Declaration as it relates to Common Area and Limited Common. Any area so purchased by the Association pursuant to these terms shall become Common Area or Limited Common Area, as appropriate, and shall be subject to the provisions of this Master Declaration as it relates to Common Area and Limited Common Area. The following hypothetical situation is by way of illustration only and not of limitation: Due to a surveying error, an area of undesirable drainage is designated as a dwelling unit lot. Pursuant to these terms, Declarant may convey to the Association said lot which will then become Common Area.

Section 9. Insurance Proceeds. The Association shall use the proceeds realized from any casualty insurance recovery to replace and/or repair the damage or destruction of any property, real or personal, which is covered by such insurance. Any balance remaining from those proceeds after satisfactory restoration of the affected property shall be retained by the Association as a part of its general operating funds to be used for the purposes as delineated in this Master Declaration and any Supplementary Declaration. If such insurance proceeds

should be insufficient to repair or replace any casualty loss or damage to covered property, the Association may levy a special assessment as hereinabove provided to cover the deficiency.

Section 10. Protective Covenants for Multi-Unit Dwellings and Other Permitted Uses. Nothing contained herein shall affect Declarant's right to establish, from time to time, appropriate specific additional covenants for the development and use of lots for attached or detached units or for any other permitted use within SKYBROOK.

Section 11. Conflicts. In the event of any irreconcilable conflict between this Master Declaration and the Bylaws of the Association, the provisions of this Master Declaration shall control. In the event of an irreconcilable conflict between this Master Declaration or the Bylaws of the Association and the Articles of Incorporation of same, the provisions of the Articles of Incorporation shall control.

Section 12. Severability. Invalidity of any one of the provisions of this Master Declaration by judgment or court order shall in no way affect any other provisions of this Master Declaration, which shall remain in full force and effect.

ARTICLE IX

DISSOLUTION OR INSOLVENCY OF THE ASSOCIATION

The Association may be dissolved with the assent given in writing and executed by not less than two-thirds (2/3) of each class of its members. Upon dissolution other than incident to a merger or consolidation, the assets of the Association shall be dedicated to an appropriate public agency to be used for purposes similar to those intended by the Association. If such dedication is refused, the assets shall be granted, conveyed and assigned to any non-profit corporation, association, or trust or any other organization devoted to similar purposes.

IN WITNESS WHEREOF, Declarant has caused this instrument to be executed and its seal affixed hereto, the day and year first above written.

MVC, LLC

(SEAL)

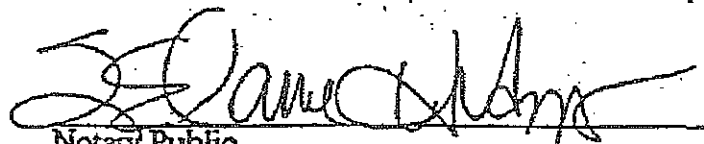
by: _____ (SEAL)
Manager

NORTH CAROLINA, WAKE COUNTY

I, S. Elaine Hudspeth, Notary Public, do hereby certify that JOHN T. COLEY, IV,
MANAGER OF MVC, LLC, personally appeared before me this day and acknowledged the
execution of the foregoing instrument. Witness my hand and official seal, this the 9 day
of SEPTEMBER, 1999.

OFFICIAL SEAL
North Carolina Wake County
S. ELAINE HUDSPETH
Notary Public

My Commission Expires November 3, 2001



Notary Public

My commission expires: 11-3-01

Edf Lots

FOR REGISTRATION WITH A. GIBSON
 CLERK OF DEEDS
 MECKLENBURG COUNTY, NC
 1000 JUNE 10, 1999 PM
 BOOK 11530 PAGE 272-200 FEE \$62.00
 INSTALLMENT \$1550101247

Mecklenburg

STATE OF NORTH CAROLINA)
)
 COUNTIES OF MECKLENBURG)
)
 AND CABARRUS)

DECLARATION OF RESTRICTIONS,
 COVENANTS AND EASEMENTS

10530/272

Cabarrus

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This Declaration of Restrictions, Covenants and Easements ("Declaration"), made as of this 26th day of April, 1999, by MVC, LLL, a North Carolina limited liability company (the "Declarant").

RECITALS:

1. Declarant is the owner of that certain tract or parcel of real property located near Charlotte, in Mecklenburg County and Cabarrus County, North Carolina, being more particularly described in Exhibit "A" attached hereto and made a part hereof by this reference, that it is in the process of developing into a residential subdivision (the "Residential Development").
2. Declarant has commenced and desires to complete the development of a portion of the Residential Development, being more particularly described in Exhibit "B" attached hereto and made a part hereof by this reference (such tract or parcel, and all buildings and facilities thereon at the time of conveyance to the Purchaser, together with all rights and the appurtenances belonging or appertaining thereto, being hereinafter referred to as the "Golf Course Property"), as a championship golf course and related facilities and amenities (the "Golf Course", which term includes the Golf Course Property on which it is being constructed).
3. Declarant has an option under existing contracts to buy additional land to be developed in conjunction with the Residential Development, such land being more particularly described in Exhibit "C" attached hereto and made a part hereof by this reference (the "Additional Land").
4. Declarant and Purchaser have entered into that certain Land Development and Purchase Agreement, dated April 26, 1999 (the "Agreement") pursuant to which the Purchaser will purchase the Golf Course Property on an installment contract basis and under certain other conditions contained therein. It is a material condition to the Agreement that Declarant subject the Residential Development to certain restrictions, covenants and easements in favor of the Golf Course Property prior to either the first conveyance of property in the Residential Development or the payment of the first installment due under the Agreement.
5. Declarant and Purchaser have agreed that the Golf Course Property shall also be subject to certain easements benefiting the Residential Development.

1053024-3 - DECL REST & COV

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Prepared by and Return to: BOX 10 *W*
 Parker, Poe, Adams & Bernstein LLP
 2500 Charlotte Plaza
 Charlotte, North Carolina 28244

*Wanda Carlyle Sanchez
& Ric, LLC*

Order: GVZ9HXG36
 Address: 9829 Skybluff Cir
 Order Date: 10-02-2021
 Document not for resale
 HomeWiseDocs

AGREEMENT:

NOW, THEREFORE, in consideration of the premises and the foregoing and other good and valuable consideration, the receipt and adequacy of which are hereby acknowledged by Declarant, the Declarant does hereby publish, declare and impose the following restrictions, covenants and easements on the Residential Development:

1. Definitions.

- (a) "Lot" shall mean and refer to any parcel of land within the Residential Development that is intended for use as a site for a dwelling unit or for multi-family dwelling units, as shown upon any plat of the Residential Development recorded in the County of Mecklenburg or Cabarrus, as appropriate, and consented to by the Declarant or its successors. The term "Lot" shall not include common area, streets, or the Golf Course.
- (b) "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot on the Residential Development. Notwithstanding any applicable theory of lien or mortgage law, "Owner" shall not mean or refer to any trust beneficiary unless and until such trust beneficiary has acquired title pursuant to foreclosure or any proceeding in lieu of foreclosure. "Owner" shall also mean and refer to tenants of any Lots for purposes hereof.
- (c) All other capitalized terms herein shall have the meanings ascribed to them elsewhere in this Declaration.

- 2. Risks. The Owner of each Lot acknowledges that owning property adjacent or in close proximity to a golf course involves certain risks that may have an effect on the use or enjoyment of such Lot. Each Owner acknowledges that such risks may include, for example but not limited to, errant golf balls hit onto such property potentially causing bodily injury to persons or physical damage to property, and further including golfers entering onto such property to look for such errant golf balls, and the mist or overspray of golf course irrigation onto a Lot. Each Owner hereby expressly assumes such risks and agrees that neither Declarant nor any other entity owning or managing the Golf Course shall be liable to any Owner or anyone claiming any loss or damage, including, without limitation, indirect, special or consequential loss or damage arising from personal injury, destruction of property, trespass or any other alleged wrong or entitlement to remedy based upon, due to, arising from or otherwise relating to the proximity of any Lot to the Golf Course, including, without limitation, any claim arising in whole or in part from the alleged negligence of Declarant or any other entity owning or managing the Golf Course. The Owner of each Lot hereby agrees, and agrees by its acceptance of a deed to property in the Residential Development, to indemnify

and hold harmless Declarant or any other entity owning or managing the Golf Course against any and all claims by the Owner and his guests, invitees or licensees with respect to the above. Nothing in this Section shall restrict or limit any power of Declarant or any other entity owning or managing the Golf Course to change the design of the Golf Course, and such changes, if any, shall not nullify, restrict or impair the covenants and duties of any Owner herein.

3. Reciprocal Utility Easements. The entire Residential Development, including the Golf Course Property, and the Additional Land (confirmation of which shall be made by the Declarant upon its acquisition of the Additional Land), is hereby subject to and benefited by non-exclusive utility easements over the Residential Development, including the Golf Course Property, and the Additional Land, such utility easements to be more specifically located by the Declarant and the Purchaser or their successors and assigns in the future as specific locations for such easements are identified.

4. Other Easements Benefiting the Golf Course.

- (a) The Residential Development and the Additional Land (confirmation of which shall be made by the Declarant upon its acquisition of the Additional Land), is hereby subject to fifty foot (50') and eighty-five foot (85') wide non-exclusive easements for the benefit of and appurtenant to the Golf Course Property, for the purpose of vehicular (including but not limited to golf carts) and pedestrian egress, ingress and regress, running over, across and through the Residential Property and the Additional Land, such easements to run in the locations of the roads ("Roads") shown on that certain development plan ("Plan") of the Residential Property entitled "Sketch Plan, Eastfield Road Project", dated November 30, 1998 and prepared by Yarborough-Williams & Associates, Inc., or in such locations as shall be determined by Declarant or its successors and assigns to be the location of the Roads so long as such location continues to provide access to the Golf Course Property substantially in accordance with the Plan. Provided, however, when Declarant or its successors and assigns has dedicated the Roads as shown on the Plan for public use and such dedications have been accepted by the State of North Carolina, the easement rights with respect to such dedicated portions of the Roads shall terminate.

Nothing in the foregoing grants the Golf Course owner, or the Golf Course's operator, members or guests, the right to park any motor vehicles on the portion of the Residential Development not comprising the Golf Course.

- (b) The Residential Development, including the Additional Land (confirmation of which shall be made by Declarant upon its acquisition of

the Additional Land), is hereby subject to approximately twenty foot (20') wide non-exclusive golf car path easements ("Path Easements") for the benefit of and appurtenant to the Golf Course Property for the purpose of golf cart and pedestrian egress, ingress and regress, running over, across and through the Residential Property and the Additional Land, such Path Easements to run in such locations as shall mutually be determined by Declarant and Purchaser, or their successors and assigns, such locations in any event providing access to the Golf Course Property in a manner that facilitates the use of the Golf Course Property as a golf course.

- (b) Every Lot is burdened with an easement permitting authorized golfers to do every act necessary and reasonably incident to the playing of golf on the golf course adjacent to the Lot, as well as an easement permitting golf balls to enter upon the Lot, and for golfers at reasonable times and in a reasonable manner to enter upon the exterior portions of the Lot to retrieve errant golf balls. Unless approved by the homeowners association and the owners of the Golf Course, Lots that are adjacent to the Golf Course may not be improved with fences or other barriers, within fifty (50) feet of the Golf Course Property, that would prevent entry by golfers to retrieve errant golf balls. Every Owner of every Lot by acceptance of delivery of a deed to the Lot, assumes all risks associated with errant golf balls, player entry onto property, and irrigation overspray, and each such Owner agrees and covenants not to make any claim or institute any action whatsoever against Declarant, the golf course designer, the Golf Course Owner or operator, or any other party relating to the design and utilization of the golf course or to any errant golf ball, any damages caused thereby, or for negligent design of the golf course or the siting of the Lot.

Notwithstanding the foregoing, however, golfers that enter any portion of any Lot shall be liable to the Owners thereof for any damage caused by such entry, including damage to improvements or landscaping on the Lot even if the entry is made for the retrieval of errant golf balls.

- (c) Declarant also reserves on behalf of the Golf Course the right to use the necessary and usual equipment upon the golf course, and every Owner acknowledges and accepts the potential for all common noises associated with using such equipment, at the hours of the day in which such equipment is typically used on a golf course, as well as the usual and common noises associated with the playing of the game of golf. Also reserved by Declarant is the right to do all such other common and usual activities associated with and necessary to the operation and maintenance of a golf facility, as well as a non-exclusive easement for ingress and egress over, across, and through all streets in the Residential Development for access to and from the Golf Course to Declarant, its successors and assigns, and the Golf Course, its operators, members and guests.

- (d) Any portion of the Residential Development immediately adjacent to the golf course that comprises a portion of the Golf Course is hereby burdened with a perpetual, non-exclusive easement, during the times, if any, when the Golf Course Property is being operated as a Golf Course, in favor of the Golf Course owner, for overspray of water from the irrigation system serving the Golf Course. Under no circumstances shall the Declarant, the Owners, the homeowners association, a neighborhood homeowners association, or the Golf Course owner be held liable for any damage or injury resulting from such overspray or the exercise of this easement.
5. Maintenance of Property Adjacent to the Golf Course. Subject to the limitation contained in this Section, Declarant hereby reserves in favor of the Golf Course owner, its operators, respective agents, employees, successors, and assigns, a perpetual, non-exclusive right and easement over and across each Lot that is adjacent to the fairways and greens of the Golf Course, which right and easement shall permit, but not obligate, the Golf Course owner or its operator, upon receiving permission from the Declarant to go upon such Lot, to maintain or landscape the area encumbered by such easement. Such maintenance and landscaping shall include the planting of grass, watering, application of fertilizer, mowing, and the removal of underbrush, stumps, trash or debris, and trees of less than three (3) inches in diameter at a level of four (4) feet above ground level. The area encumbered by this easement shall be limited to the portion of such Lot within thirty (30) feet of those boundary lines of such Lot that are adjacent to such fairways or greens.
6. Distractions. Owners of Lots adjacent to all golf course fairways and greens, as well as their families, tenants, guests, invitees and pets, shall be obligated to refrain, during the hours of normal operation of the Golf Course, from any actions which would detract from the playing qualities of the golf course. Such prohibited activities shall include, but not be limited to, maintenance of dogs or other pets under conditions which interfere with golf course play due to their loud barking or other actions, running or walking on the fairways or greens, picking up balls, or like interference with play.
7. Use of Golf Course. Notwithstanding anything herein to the contrary, the owner or owners of the Golf Course shall have the sole and exclusive right, from time to time, to determine the terms and conditions under which the Golf Course shall be available for play.

The foregoing restrictions, covenants and easements (the "Golf Course Covenants") may be waived, terminated, altered, and amended only with the written consent of the Purchaser, and only in its sole discretion. Notwithstanding the foregoing, however, the Declarant may encumber the Residential Development with more detailed and comprehensive restrictive covenants concerning the Residential Development ("Restrictive Covenants"), which may supercede and replace the restrictions, covenants and easements contained herein, but only if the following are all true with respect to the new, more detailed Restrictive Covenants:

- (i) The Restrictive Covenants include provisions substantially similar to the Golf Course Covenants;
- (ii) The Golf Course Covenants contained in the Restrictive Covenants run in favor of the Golf Course Property;
- (iii) The Restrictive Covenants are not subject to the interest of any lender, governmental authority or lien, or any other interest of the Golf Course Property;
- (iv) The Restrictive Covenants provide that the Golf Course Covenants cannot be amended, modified, terminated or otherwise changed or waived without the express written consent of the Golf Course Property Owner;
- (v) The Restrictive Covenants provide that the owner of the Golf Course Property shall be entitled to enforce the Golf Course Covenants in the same manner in which the Declarant or the homeowners association contemplated in the Restrictive Covenants may enforce the other terms of the Restrictive Covenants, and that any failure by the Golf Course Property owner to enforce the Golf Course Covenants shall not be deemed a waiver of the right to do so thereafter; and
- (vi) As the Declarant obtains title to any portion of the Additional Land, the Declarant shall encumber such property with the Golf Course Covenants, subject to the terms hereof, by recording a Supplemental Declaration extending the terms hereof to the Additional Land then owned by the Declarant.

IN WITNESS WHEREOF, Declarant has executed this Declaration of Restrictions, Covenants and Easements under seal as of the date first written above.

MVC, LLC,

a North Carolina limited liability company

(SEAL)

By.

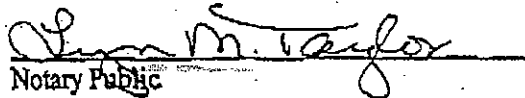
John T. Coley, IV (SEAL)

STATE OF NORTH CAROLINA

COUNTY OF MECKLENBURG

I, Lyn M. Taylor, a Notary public for said County and State, do hereby certify that John T. Coley, IV, Manager of MVC, LLC, a North Carolina limited liability company, personally appeared before me this day and acknowledged the due execution of the foregoing instrument on behalf of the company.

WITNESS my hand and official seal or stamp, this the 26th day of May, 1999.


Notary Public

My Commission expires:

7-2003
[NOTARY SEAL]



Schedule of Exhibits:

- EXHIBIT A: Legal Description of the Residential Development
- EXHIBIT B: Legal Description of the Golf Course Property
- EXHIBIT C: Legal Description of the Additional Land

SPAB-CR1/306450.1

Order: GVZ9HXG36
Address: 9829 Skybluff Cir
Order Date: 10-02-2021
Document not for resale
HomeWiseDocs

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FOR REGISTRATION JUDITH A GIBSON
REGISTER OF DEEDS
MECKLENBURG COUNTY, NC
1999 JUN 09 04 50 PM
BOOK 19930 PAGE 272-333 FEE \$62.60
INSTRUMENT # 1999101747

STATE OF NORTH CAROLINA)
COUNTIES OF MECKLENBURG)
AND CABARRUS)

DECLARATION OF RESTRICTIONS,
COVENANTS AND EASEMENTS

This Declaration of Restrictions, Covenants and Easements ("Declaration"), made as of this 26th day of April, 1999, by MVC, L.L., a North Carolina limited liability company (the "Declarant").

RECITALS:

1. Declarant is the owner of that certain tract or parcel of real property located near Charlotte, in Mecklenburg County and Cabarrus County, North Carolina, being more particularly described in Exhibit "A" attached hereto and made a part hereof by this reference, that it is in the process of developing into a residential subdivision (the "Residential Development").
2. Declarant has commenced and desires to complete the development of a portion of the Residential Development, being more particularly described in Exhibit "B" attached hereto and made a part hereof by this reference (such tract or parcel, and all buildings and facilities thereon at the time of conveyance to the Purchaser, together with all rights and the appurtenances belonging or appertaining thereto, being hereinafter referred to as the "Golf Course Property"), as a championship golf course and related facilities and amenities (the "Golf Course", which term includes the Golf Course Property on which it is being constructed).
3. Declarant has an option under existing contracts to buy additional land to be developed in conjunction with the Residential Development, such land being more particularly described in Exhibit "C" attached hereto and made a part hereof by this reference (the "Additional Land").
4. Declarant and Purchaser have entered into that certain Land Development and Purchase Agreement, dated April 26, 1999 (the "Agreement") pursuant to which the Purchaser will purchase the Golf Course Property on an installment contract basis and under certain other conditions contained therein. It is a material condition to the Agreement that Declarant subject the Residential Development to certain restrictions, covenants and easements in favor of the Golf Course Property prior to either the first conveyance of property in the Residential Development or the payment of the first installment due under the Agreement.
5. Declarant and Purchaser have agreed that the Golf Course Property shall also be subject to certain easements benefiting the Residential Development.

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Prepared by and Return to: BOK 70101
Porter, Poe, Adams & Bernstein LLP
2500 Charlotte Plaza
Charlotte, North Carolina 28244

Order: GVZ91X036
Address: 9829 Skybluff Cir
Order Date: 10-02-2021
Document not for resale
HomeWiseDocs

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AGREEMENT:

NOW, THEREFORE, in consideration of the premises and the foregoing and other good and valuable consideration, the receipt and adequacy of which are hereby acknowledged by Declarant, the Declarant does hereby publish, declare and impose the following restrictions, covenants and easements on the Residential Development:

Definitions

- (a) "Lot" shall mean and refer to any parcel of land within the Residential Development that is intended for use as a site for a dwelling unit or for multi-family dwelling units, as shown upon any plat of the Residential Development recorded in the County of Mecklenburg or Cabarrus, as appropriate, and consented to by the Declarant or its successors. The term "Lot" shall not include common area, streets, or the Golf Course.
- (b) "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot on the Residential Development. Notwithstanding any applicable theory of lien or mortgage law, "Owner" shall not mean or refer to any trust beneficiary unless and until such trust beneficiary has acquired title pursuant to foreclosure or any proceeding in lieu of foreclosure. "Owner" shall also mean and refer to tenants of any Lots for purposes hereof.
- (c) All other capitalized terms herein shall have the meanings ascribed to them elsewhere in this Declaration.
2. Risks. The Owner of each Lot acknowledges that owning property adjacent or in close proximity to a golf course involves certain risks that may have an effect on the use or enjoyment of such Lot. Each Owner acknowledges that such risks may include, for example but not limited to, errant golf balls hit onto such property potentially causing bodily injury to persons or physical damage to property, and further including golfers entering onto such property to look for such errant golf balls, and the mist or overspray of golf course irrigation onto a Lot. Each Owner hereby expressly assumes such risks and agrees that neither Declarant nor any other entity owning or managing the Golf Course shall be liable to any Owner or anyone claiming any loss or damage, including, without limitation, indirect, special or consequential loss or damage arising from personal injury, destruction of property, trespass or any other alleged wrong or entitlement to remedy based upon, due to, arising from or otherwise relating to the proximity of any Lot to the Golf Course, including, without limitation, any claim arising in whole or in part from the alleged negligence of Declarant or any other entity owning or managing the Golf Course. The Owner of each Lot hereby agrees, and agrees by its acceptance of a deed to property in the Residential Development, to indemnify

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and hold harmless Declarant or any other entity owning or managing the Golf Course against any and all claims by the Owner and his guests, invitees or licensees with respect to the above. Nothing in this Section shall restrict or limit any power of Declarant or any other entity owning or managing the Golf Course to change the design of the Golf Course, and such changes, if any, shall not nullify, restrict or impair the covenants and duties of any Owner herein.

3. Reciprocal Utility Easements. The entire Residential Development, including the Golf Course Property, and the Additional Land (confirmation of which shall be made by the Declarant upon its acquisition of the Additional Land), is hereby subject to and benefited by non-exclusive utility easements over the Residential Development, including the Golf Course Property, and the Additional Land, such utility easements to be more specifically located by the Declarant and the Purchaser or their successors and assigns in the future as specific locations for such easements are identified.

4. Other Easements Benefiting the Golf Course.

(a) The Residential Development and the Additional Land (confirmation of which shall be made by the Declarant upon its acquisition of the Additional Land) is hereby subject to fifty foot (50') and eighty-five foot (85') wide non-exclusive easements for the benefit of and appurtenant to the Golf Course Property, for the purpose of vehicular (including but not limited to golf carts) and pedestrian egress, ingress and regress, running over, across and through the Residential Property and the Additional Land, such easements to run in the locations of the roads ("Roads") shown on that certain development plan ("Plan") of the Residential Property entitled "Sketch Plan, Eastfield Road Project", dated November 30, 1998 and prepared by Yarborough-Williams & Associates, Inc., or in such locations as shall be determined by Declarant or its successors and assigns to be the location of the Roads so long as such location continues to provide access to the Golf Course Property substantially in accordance with the Plan. Provided, however, when Declarant or its successors and assigns has dedicated the Roads as shown on the Plan for public use and such dedications have been accepted by the State of North Carolina, the easement rights with respect to such dedicated portions of the Roads shall terminate.

Nothing in the foregoing grants the Golf Course owner, or the Golf Course's operator, members or guests, the right to park any motor vehicles on the portion of the Residential Development not comprising the Golf Course.

(b) The Residential Development, including the Additional Land (confirmation of which shall be made by Declarant upon its acquisition of

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the Additional Land), is hereby subject to approximately twenty foot (20') wide non-exclusive golf car path easements ("Path Easements") for the benefit of and appurtenant to the Golf Course Property for the purpose of golf cart and pedestrian egress, ingress and regress, running over, across and through the Residential Property and the Additional Land, such Path Easements to run in such locations as shall mutually be determined by Declarant and Purchaser, or their successors and assigns, such locations in any event providing access to the Golf Course Property in a manner that facilitates the use of the Golf Course Property as a golf course.

- (b) Every Lot is burdened with an easement permitting authorized golfers to do every act necessary and reasonably incident to the playing of golf on the golf course adjacent to the Lot, as well as an easement permitting golf balls to enter upon the Lot, and for golfers at reasonable times and in a reasonable manner to enter upon the exterior portions of the Lot to retrieve errant golf balls. Unless approved by the homeowners association and the owners of the Golf Course, Lots that are adjacent to the Golf Course may not be improved with fences or other barriers, within fifty (50) feet of the Golf Course Property, that would prevent entry by golfers to retrieve errant golf balls. Every Owner of every Lot by acceptance of delivery of a deed to the Lot, assumes all risks associated with errant golf balls, player entry onto property, and irrigation overspray, and each such Owner agrees and covenants not to make any claim or institute any action whatsoever against Declarant, the golf course designer, the Golf Course Owner or operator, or any other party relating to the design and utilization of the golf course or to any errant golf ball, any damages caused thereby, or for negligent design of the golf course or the siting of the Lot.

Notwithstanding the foregoing, however, golfers that enter any portion of any Lot shall be liable to the Owners thereof for any damage caused by such entry, including damage to improvements or landscaping on the Lot even if the entry is made for the retrieval of errant golf balls.

- (c) Declarant also reserves on behalf of the Golf Course the right to use the necessary and usual equipment upon the golf course, and every Owner acknowledges and accepts the potential for all common noises associated with using such equipment, at the hours of the day in which such equipment is typically used on a golf course, as well as the usual and common noises associated with the playing of the game of golf. Also reserved by Declarant is the right to do all such other common and usual activities associated with and necessary to the operation and maintenance of a golf facility, as well as a non-exclusive easement for ingress and egress over, across, and through all streets in the Residential Development for access to and from the Golf Course to Declarant, its successors and assigns, and the Golf Course, its operators, members and guests.

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(d) Any portion of the Residential Development immediately adjacent to the golf course that comprises a portion of the Golf Course is hereby burdened with a perpetual, non-exclusive easement, during the times, if any, when the Golf Course Property is being operated as a Golf Course, in favor of the Golf Course owner, for overspray of water from the irrigation system serving the Golf Course. Under no circumstances shall the Declarant, the Owners, the homeowners association, a neighborhood homeowners association, or the Golf Course owner be held liable for any damage or injury resulting from such overspray or the exercise of this easement.

5. Maintenance of Property Adjacent to the Golf Course. Subject to the limitation contained in this Section, Declarant hereby reserves in favor of the Golf Course owner, its operators, respective agents, employees, successors, and assigns, a perpetual, non-exclusive right and easement over and across each Lot that is adjacent to the fairways and greens of the Golf Course, which right and easement shall permit, but not obligate, the Golf Course owner or its operator, upon receiving permission from the Declarant to go upon such Lot, to maintain or landscape the area encumbered by such easement. Such maintenance and landscaping shall include the planting of grass, watering, application of fertilizer, mowing, and the removal of underbrush, stumps, trash or debris, and trees of less than three (3) inches in diameter at a level of four (4) feet above ground level. The area encumbered by this easement shall be limited to the portion of such Lot within thirty (30) feet of those boundary lines of such Lot that are adjacent to such fairways or greens.
6. Distractions. Owners of Lots adjacent to all golf course fairways and greens, as well as their families, tenants, guests, invitees, and pets, shall be obligated to refrain, during the hours of normal operation of the Golf Course, from any actions which would detract from the playing qualities of the golf course. Such prohibited activities shall include, but not be limited to, maintenance of dogs or other pets under conditions which interfere with golf course play due to their loud barking or other actions, running or walking on the fairways or greens, picking up balls, or like interference with play.
7. Use of Golf Course. Notwithstanding anything herein to the contrary, the owner or owners of the Golf Course shall have the sole and exclusive right, from time to time, to determine the terms and conditions under which the Golf Course shall be available for play.

The foregoing restrictions, covenants and easements (the "Golf Course Covenants") may be waived, terminated, altered, and amended only with the written consent of the Purchaser, and only in its sole discretion. Notwithstanding the foregoing, however, the Declarant may encumber the Residential Development with more detailed and comprehensive restrictive covenants concerning the Residential Development ("Restrictive Covenants"), which may supersede and replace the restrictions, covenants and easements contained herein, but only if the following are all true with respect to the new, more detailed Restrictive Covenants:

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- (i) The Restrictive Covenants include provisions substantially similar to the Golf Course Covenants;
- (ii) The Golf Course Covenants contained in the Restrictive Covenants run in favor of the Golf Course Property;
- (iii) The Restrictive Covenants are not subject to the interest of any lender, governmental authority or lien, or any other interest of the Golf Course Property;
- (iv) The Restrictive Covenants provide that the Golf Course Covenants cannot be amended, modified, terminated or otherwise changed or waived without the express written consent of the Golf Course Property Owner;
- (v) The Restrictive Covenants provide that the owner of the Golf Course Property shall be entitled to enforce the Golf Course Covenants in the same manner in which the Declarant or the homeowners association contemplated in the Restrictive Covenants may enforce the other terms of the Restrictive Covenants, and that any failure by the Golf Course Property owner to enforce the Golf Course Covenants shall not be deemed a waiver of the right to do so thereafter; and
- (vi) As the Declarant obtains title to any portion of the Additional Land, the Declarant shall encumber such property with the Golf Course Covenants, subject to the terms hereof, by recording a Supplemental Declaration extending the terms hereof to the Additional Land then owned by the Declarant.

IN WITNESS WHEREOF, Declarant has executed this Declaration of Restrictions, Covenants and Easements under seal as of the date first written above.

MVC, LLC,
a North Carolina limited liability company (SEAL)

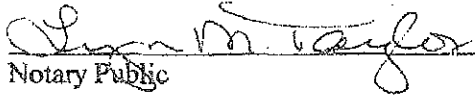
By: John T. Colley, II (SEAL)

STATE OF NORTH CAROLINA

COUNTY OF MECKLENBURG

I, Lyn M. Taylor, a Notary public for said County and State, do hereby certify that John T. Coley, IV, Manager of MVC, LLC, a North Carolina limited liability company, personally appeared before me this day and acknowledged the due execution of the foregoing instrument on behalf of the company.

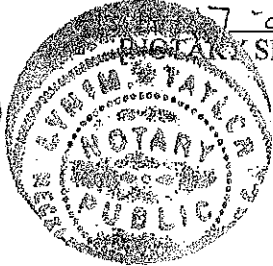
WITNESS my hand and official seal or stamp, this the 26th day of May, 1999.


Notary Public

My Commission expires:

7-2-2023

[NOTARY SEAL]



Schedule of Exhibits:

- EXHIBIT A: Legal Description of the Residential Development
EXHIBIT B: Legal Description of the Golf Course Property
EXHIBIT C: Legal Description of the Additional Land



Community Rules and Regulations Guidebook- Historic Skybrook
(Revised 6/1/10)

Skybrook is a planned developed community which is governed by recorded Covenants and Restrictions. The Skybrook Covenants and Restrictions permit the Skybrook Board of Directors to create guidelines that further clarify the covenants and restrictions. These Rules and Regulations are adopted by the Board of Directors of the Skybrook Homeowners Association to further the public health, safety, welfare, and enjoyment of Skybrook by its residents. These Rules and Regulations are subject to change by the Board. These Rules and Regulations do not apply to or limit any power or authority of the Declarant under the Master Declaration of Covenants, Conditions and Restrictions of Skybrook ("Master Declaration").

All items listed in these guidelines and within the Skybrook CC&R's must be approved by the Architectural Review Board (ARB) prior to installation. All improvements must be shown on a survey (to scale) with details of the request verifying that all CC&R's and the community's architectural integrity has been met or exceeded. The Skybrook Architectural Review Board (ARB) has 30 days upon receipt to approve, approve with conditions, and deny requests. Once the project is complete, the homeowner must notify the committee for final inspection.

Please note that all applications are subject to municipal rules and regulations. It is the responsibility of the homeowner to acquire all necessary approvals and permits prior to installation.

I. Landscaping

A. Front, Side, and Back Yard

1. All improvements/modifications to the original landscaping installed by the builder must be approved by the Skybrook Architectural Review Board. Examples of changes that must be approved are: addition and/or change of bedded areas, tree(s), shrubbery, and plants. Replacement in kind of original tree(s), shrubbery and plants does not require approval. Planting of seasonal flowers in existing bedded areas does not require approval.
2. Bedded areas must be mulched with brown pine needles or brown to dark brown color, shredded wood mulch. Materials such as dyed mulch, i.e. red mulch, gravel, pebbles, lava stone, sand, etc. shall not to be used as mulch in bedded areas.
3. Air conditioning compressors must be screened from public view with evergreen shrubbery. Lawns must be maintained with grass. Stones, pebbles, lava rock, sand or other materials are not be used as a replacement for grass.
4. Lawns must be kept green and free of large infestations of weeds and/or crab grass.
5. Yard grass must be maintained at a 2 to 4 inch height in keeping with neighborhood appearance standards.
6. Grass, tree(s), shrubbery and plant(s) must be maintained by the homeowner in a healthy appearance by proper fertilizer treatment, watering and pruning.
7. Mature growth will be taken into consideration when planting on the property line. Landscaping setbacks will be determined on a case by case basis and dependant on the type of landscaping requested.

Order: GVZ9HXG36
Address: 9829 Skybluff Cir
Order Date: 10-02-2021
Document not for resale
HomeWiseDocs

B. Sidewalk Strip - The sidewalk strip is the area between the street/curb and the sidewalk and runs from the homeowner's lot side boundary to side boundary.

1. Street trees throughout the neighborhood sidewalk strip area were selected by the developer as part of the neighborhood landscape plan and **can not be changed** to another type of tree by the homeowner. The number and spacing of trees in the sidewalk strip was also defined by the neighborhood landscape plan and **can not be changed** by the homeowner.
2. It is the responsibility of the homeowner to replace deceased street trees with the same type of tree, comparable in size and height of the existing adjacent street trees (in no case shall the replacement trees be smaller than 3-4" in diameter and 8' in height). Homeowners are required to prune limbs so that street and stop signs are not blocked and pedestrians have a clear walking path on sidewalks.
3. Street trees must be mulched with brown pine needles or brown to dark brown color, shredded wood mulch. Materials such as dyed mulch, i.e. red mulch, gravel, lava stone, sand, etc. are not to be used as mulch around street trees. The mulch bed beneath each tree must extend from the street to the sidewalk (approximately 6 feet) and 3 feet on either side of the tree trunk resulting in a 6 foot square bed.
4. The sidewalk strip area must be maintained with grass. Stones, pebbles, sand or other similar materials are not permitted as a replacement for grass.
5. Flowers may be planted in the sidewalk strip area but only around the mailbox post. The bed for the flowers may be no more than a 3 foot radius around the post. Flowers selected must be confined to the 3 foot bed area. If the flower bed is mulched, it must be mulched with brown pine needles or brown to dark brown color, shredded wood mulch. No shrubbery or other plants shall be planted in the sidewalk strip.
6. Landscaping timbers, interlocking landscaping blocks, bricks or other similar materials not installed by the builder are not permitted in the sidewalk strip area.
7. Sidewalk strip grass must be maintained by the homeowner at a 2 to 4 inch height in keeping with neighborhood appearance standards.
8. Grass and trees in the sidewalk strip must be maintained by the homeowner in a healthy appearance by proper fertilizer treatment; watering and accepted pruning techniques (see American Nurserymen's Association standards).

II. Fencing

1. All fencing must be four (4) feet in height and be picket or decorative metal only, see Exhibit A below. No vinyl, chain link, or privacy fencing is permitted except where provided by the developer.
2. Picket Fencing- All pickets must be dog-eared or angled. The spacing between the pickets shall not be less than 1 ½ inches and shall be installed on the exterior side of the fence. All wood materials shall be pressure treated southern yellow pine and left natural or stained a natural wood color (any paint or stain with color shall be submitted for approval during the ARB review). All gate posts shall be six by six (6x6) and all fence posts shall be at a minimum four by four (4x4). Spacing between posts shall be no longer than 8' on-center. All hardware must be galvanized or painted black.
3. Decorative Fencing- All metal fencing must be painted black and closely match the pictures provided below. Any other fencing including chain link or other metal fencing is prohibited.

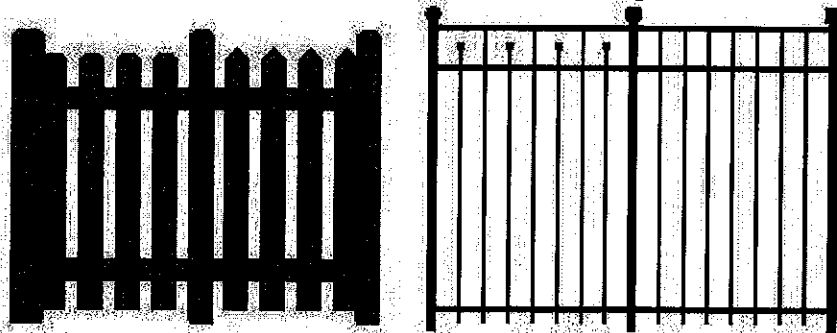


Exhibit A. Picket Dog-Eared Angled Decorative A B

4. All fence styles, postcaps, and details must be approved as a part of the home owners application.
5. All fences shall be maintained and appear in the condition as provided at installation.

6. Fence Setbacks are listed below:

- Fences may extend 5' from foundation sides beginning at rear corner of house. In no instance shall a fence be located less than 5' from the side property line.
- No fence shall be located less than 10' from rear of property line on non-golf course lots.
- No fence shall be located less than 50' from golf course.
- Corner lot street side fencing shall begin at rear corner of house and be parallel with the street.

7. Corner lot street side fencing shall be landscaped with evergreen shrubs 3' in height and placed 6' on center at the time of installation. All landscaping shown and/or required per the approval of the fence shall be installed no later than 15 days after approvals, unless specified by the Architectural Review Board (ARB).

8. The Board of Directors and the Architectural Review Board (ARB) are granted complete discretion as to the location of any fencing on any lot and will provide specifications for each fence option including any additional details required for installation. The homeowner/occupant must have approvals from the Architectural Review Board (ARB) prior to the installation.

III. 50-foot buffer

A buffer area shall be that portion of any lot within 50 feet of any property line adjoining a lake or pond or Skybrook Golf Club, or as may otherwise be shown on the recorded plat for Skybrook. The Declarant under the Master Declaration has the power to approve improvements any alterations of landscaping and topography in the buffer area. Any such approvals shall be effective regardless of these Rules and Regulations. Otherwise, the buffer area shall be governed by the following rules:

1. Lots adjacent to the golf course may not modify their appearance or function within 50 feet of the property line of the golf course without the approval of the Skybrook Golf Club and the Skybrook Architectural Review Board.
2. No modifications will be approved that create a barrier to access, serve to enclose the lot or in any other way interfere with the golf course maintenance, appearance, operation or function. (For example: No fences or hedge rows will be approved within the 50-foot buffer area)
3. No active recreation areas or storage (including sheds) will be approved within the 50-foot buffer. (For example: No swing sets, pools, play equipment/structures will be approved within the 50-foot buffer.)
4. Removal of trees over 3 inches in diameter must be approved by the Skybrook Golf Club and the Skybrook Architectural Review Board.
5. Landscape improvements may be approved at the discretion of the Skybrook Architectural Review Board provided they enhance the visual appeal of the golf course; their purpose/use is for passive activity (either sitting or standing,) they propose only minor alterations to the topography.

IV. Pets and Animals

1. Dogs, cats, and other usual and common household pets may be kept, but not for any commercial purposes, provided that, in the sole judgment of the Board of Directors, such pets do not create a nuisance, such as by noise, odor, damage, aggressive behavior, or destruction of any property.
2. No person shall keep upon any lot or in any unit more than three household pets, except for newborn offspring of such household pets which are under four months of age. However, this section does not allow for the commercial breeding and sale of any animals on a regular or reoccurring basis. This limitation applies to animals that weigh over five pounds each, and is not intended to apply to fish, reptiles, and birds.
3. It shall be the responsibility of every pet owner to clean up all dog feces deposited by their pet upon the land or property of another without permission, or upon any common area, such as a sidewalk, common street, parks, recreational areas, or the landscaped areas between the sidewalk and any street.
4. No animal shall create any annoying, frequent, or excessive noise. It is the responsibility of all pet owners to not allow their pets to make or cause any noise that interferes, bothers, or annoys other residents, visitors, or golfers. The Board of Directors, after a hearing, may order any such animal that has received three or more complaints removed from Skybrook.

5. No dogs shall be kept outside overnight or when the custodian of the dog is not home. Any dogs outside of any unit or dwelling or outside of a securely enclosed fenced area, including electric containment systems, shall be kept on a leash or electronic training collar that allows the responsible custodian of the dog to maintain control over the dog at all times.
6. No aggressive behavior of any animal will be tolerated. The Board of Directors shall have the right to prohibit or require the removal of any animal that is shown to possess an aggressive disposition that endangers or interferes with a safety of another person or animal or the peaceful enjoyment of the Skybrook community.
7. No dog run or pen is allowed upon any lot without the express written approval of the ARB.

V. Noise and Quiet Enjoyment of Skybrook- Every person within Skybrook is entitled to live in an environment free from excessive, unnecessary, or offensive noise levels. The establishment of these regulations will further the public health, safety, welfare, and peace and quiet of Skybrook and its residents.

1. Violations of the following noise control regulations shall result in a fine of not less than \$50.00 for the first offense, \$100.00, for the second offense, and \$250.00 for the third and each subsequent offense, after the opportunity for notice and a hearing. These penalties are separate from any other criminal or civil action the violator may be subject to. The following is prohibited:
2. The operation of any gasoline or electric powered lawn maintenance equipment, including lawn mowers, edgers, blowers, chippers, tillers, etc., is prohibited between the hours of 8 p.m. and 8:00 a.m. Monday through Friday. On Saturday and Sunday, such equipment shall not be operated between 8 p.m. and 8:00 a.m.
3. No motor vehicle that creates a loud, harsh, annoying or objectionable sound shall be operated upon any street, lot or common area. Any vehicles that have an exhaust system that has been modified to produce a sound in excess of the State of North Carolina or other applicable municipal or county standards for such noise and equipment shall be a prima facie violation of this section. Operators of motor vehicles shall take care not to excessively "rev" and engine to create unnecessary noise.
4. No minibikes, dirt bikes, powered scooters, all-terrain vehicles, or vehicles intended primarily for off highway use, with the exception of golf carts, shall be operated within Skybrook upon any street, lot, or common area.
5. The playing of any radio, tape recorder, cassette player, compact disc or other similar device for reproducing sound located on or in any motor vehicle within Skybrook upon any street, lot, or common area should not exceed a level where such sound may be heard at a distance greater than 25 feet from such motor vehicle, or in any manner that annoys, bothers, or disturbs the peace and quiet of another resident, visitor, or golfer within Skybrook.
6. No alarm siren, bell, recorded voice message or other warning signal shall sound for a period of time greater than five minutes without automatically resetting. No external speakers for home security alarms are allowed.
7. Street vendors cannot use sound or permit the sounding of any device which produces noise or use or operate any loudspeaker, public address system, radio, sound amplifier, or other similar device to attract the attention of the public. The HOA Board of Directors shall take such necessary steps to advise the operators of these commercial activities of this section. A violation of this section shall result in a warning for the first violation. A second or subsequent violation shall result in the operator or owner of said business, or the registered owner of any vehicle involved in such business, to be sent a "No Trespass" letter by certified mail, return receipt, issued by the Board of Directors instruction such individual or individuals, or business entity not to enter upon any street, lot, or common area located within Skybrook.
8. It shall be a violation of this section for anyone to cause, permit, or allow the emission of any sound from any source or sources which would tend to annoy, bother, harass, or disturb the peace and quiet of any resident, visitor, or golfer within Skybrook. As a guide, sound exceeding 40 db (A) between the hours of 8:00 p.m. and 8:00 a.m. which emanates from any street, lot, or common area audible upon the lot of another shall be considered a violation of this section. A resident may apply to the Board of Directors in writing for not more than three variances from this section per any 12 month period. If such variance is granted for a special event, such as a social gathering, such noise as described above shall not continue past 11 p.m. A variance to this section shall only be granted for special events on a Friday or Saturday.

9. Construction, repairs, or remodeling activity on homes or structures, including work performed by commercial landscapers, shall not occur upon any lot or in any structure between the hours 7:00 p.m. and 7:00 a.m., Monday through Friday. On Saturday, no construction or similar activity shall occur between the hours of 5 p.m. and 9:00 a.m. No construction activity shall occur on Sunday except for interior work that does produce loud, harsh, or objectionable noise and then only between the hours of 10 a.m. and 5:00 p.m. No tools, machinery, equipment or supplies shall be handled or utilized in any way during those hours, nor shall workers, contractors, or subcontractors, congregate upon any lot during those times. This section is not intended to supersede the residential landscaping and maintenance activities as referenced in number 1, above.
10. Homeowners understand that all materials must be stored on homeowner's property, and no materials will be stored on the street overnight. This includes dumpsters and port-a-johns.

VI. Parking Regulations

A. Vehicle Parking

1. No vehicle of any type which is abandoned, inoperative or being stored (i.e. covered or put up on blocks and not driven on a regular basis), or any vehicle not properly registered, shall be parked upon any lot or in any driveway other than inside a garage.
2. Only conventional passenger vehicles, including pick-up trucks, may be kept upon any lot or in any driveway. All other vehicles, including but not limited to motor homes, trailers, campers, recreational vehicles, boat trailers, boats, other watercraft, motorcycles, scooters, off-highway recreational vehicles and golf carts shall be enclosed in a garage.
3. Commercial Vehicles: Commercial vehicles, vehicles with commercial writing on their exterior, vehicles primarily used for commercial purposes, or designed with a commercial purpose in mind shall only be parked in a garage. This section does not apply to any commercial vehicle upon the lot that is not under the control of the owner, but is being utilized by a contractor performing work upon the lot or at the residence and is not present at the lot for more than 10 hours in any 24 hour period.
4. On-street parking: No vehicles shall be parked upon the sidewalk or within the street right of way. This section does not preclude the OCCASSIONAL overflow parking upon the street right of way for guests provided that no inconvenience is imposed upon other owners of lots within Skybrook.
5. If temporary, on street parking is absolutely necessary, then the owner of the lot responsible for the parking condition (i.e. owner of lot hosting social gathering) must direct guests to only park on one side of the street and for all vehicles to face in the correct direction based on the flow of traffic on the side of the street that vehicles are parked upon.
6. Any vehicle parked in violation of this section may be removed by the HOA Board of Directors or their appointed representative. All expenses incurred by such action are the responsibility of the vehicle owner and/or the owner of the lot upon which the unauthorized vehicles were parked, or by the owner of the lot responsible for the parking condition.

B. Driveways

1. Driveways, both front and side load are intended to be used for motor vehicles. Any other alternative uses, changes and/or additions to driveways are considered exterior alterations to a home and require an Architectural Review Board application and approval. Exceptions to this process are movable basketball backboards (as outlined in these guidelines), movable seasonal flower planters, screened refuse containers (as outlined in these Guidelines), and watering hose containers provided that these exceptions are maintained and do not detract from the appearance of the Skybrook community.
2. Play equipment, soccer and hockey goals, furniture, cooking grills, fire pits, etc., when not in use must be stored daily and may not be visible from the street.

VII. Basketball Goals

1. Basketball goals must be approved by the Architectural Review Board (ARB) before installation or placement on the homeowner's property.
2. Basketball goals shall be permitted only if constructed of metal or fiberglass with clear backboard. Basketball goals cannot be affixed to any part of the home exterior.

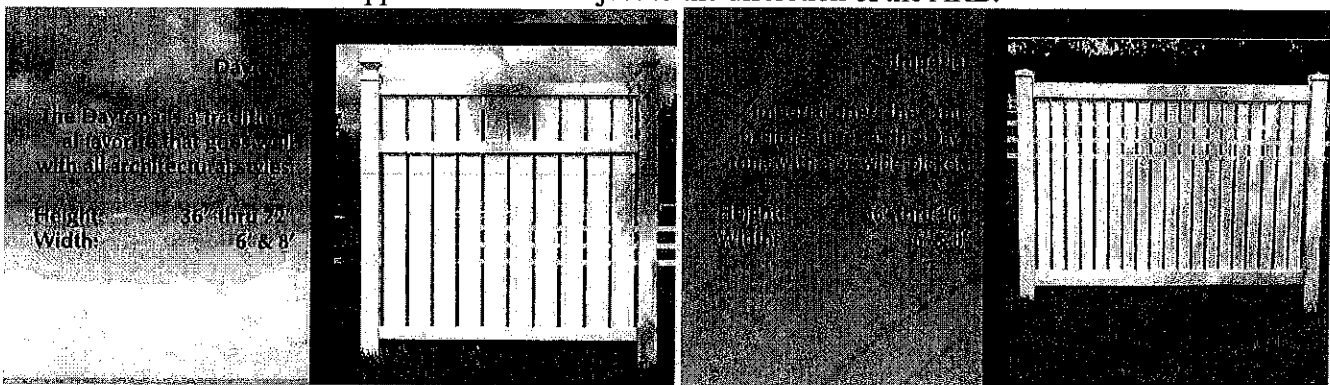
3. Basketball goals must be installed on the interior side of the lot and must empty into owner's property so that the release of the ball (during play) does not cause damage to a neighbor's home structure, landscaping, automobile(s) or other property. Play must not present a hazard to traffic flow or cause noise nuisance and should be limited to 9am to 8pm. If property damage or noise nuisance is caused by play, the homeowner may be asked to remove the goal.
4. All basketball goals shall be maintained and appear in the condition as provided at installation.
5. Portable basketball goals may only be secured by approved tie downs or anchors into the ground or driveways. The placement or stacking of any materials on the goal or base is strictly prohibited.

VIII. Play Equipment and Decks

1. No outdoor trampolines, plastic play equipment, recreational netting (soccer, volleyball, etc.), skate ramps are allowed on any residential lot.
2. All approved play equipment must be located at least 10' from all property lines and placed in the rear yard. The structures must be placed directly behind the house in order to screen from the street/sidewalk view. If visible from the street, the ARB may require additional landscaping.
3. All decks and play structures shall be constructed of natural or composite wood that compliments the principal structure (house).
4. All Play Structures and Decks shall be maintained and appear in the condition as provided at installation.
5. All landscaping shown and/or required per the approval of the play structures and decks shall be installed no later than 15 days after approvals.

IX. Refuse, Recycling and Sanitary Storage Containers

1. All refuse, recycling, and sanitary storage containers shall be stored in the garage. If the owner desires to store these containers on the outside of the residence, the containers must be screened from view and shall meet the following requirements:
 - The screen shall be four (4) feet in height as measured from ground level and be located on the side or rear of the residence.
 - The materials may only consist of wood or vinyl and shall be colored white, southern yellow pine, or match the predominant color of the primary residence.
 - The screen shall directly abut the residence, enclosing the container(s) on three sides. A locking gate will be placed on the opposite side of the residence and will be closed at all times.
2. Approvals for container screening shall meet one of the following two options:
 - The homeowner/occupant may use the Daytona or Imperial styles as shown below (Exhibit B) without obtaining approvals through the ARB (Architectural Review Board) process. **OR**
 - The homeowner must submit an application, survey providing the location, and pictures of the desired screen for approval through the ARB. Note that the desired screen must meet all of the requirements listed above and the approval will be subject to the discretion of the ARB.



(Exhibit B)

X. Sheds

1. Must not exceed 100 square feet in size and may not have a dimension larger than 10'.

2. Must be located in the rear yard, not be visible from the street and must be located at least 10' from all property lines. On corner lots the shed shall be located on the non-street side, be located directly behind the residence and 10' from all property lines. Sheds shall remain outside the 50' buffer on all golf course lots.
3. All materials have to match with predominate housing materials (i.e. if the residence is brick the shed must use matching bricks). All doors, trim, and fixtures must match exactly with the residence.
4. Must only have one floor and be finished on the interior. At no point shall the shed be converted or used as an accessory dwelling to the primary residence. Height of the shed will be determined by the Architectural Review Board at the time of application.
5. Shall be landscaped on all four sides with 4' evergreen shrubs at install. The only exception to landscaping will be at the opening of the shed.
6. Sheds will not be allowed path or walk ways leading from the residence.

XI. Detached Garages

1. Detached Garages will only be allowed on Saussy Burbank Houses with existing side load garages
2. The proposal must be for a one or two car, single story garage only. Height of the garage will be determined by the Architectural Review Board at the time of application.
3. No garage shall be permanently enclosed or converted to another type of living space so that amount of garage capacity is reduced below the original specifications of said dwelling.
4. The detached garage must match in appearance and architectural style with the on-site house and be built fully to building code.
5. All building materials used shall match exactly with the on-site residence including but not limited to the trim, shingles and lighting fixtures.
6. The interior of the garage shall be finished and painted to match the interior of the existing garage or as otherwise approved by the ARB committee.
7. If there are any proposed secondary entrances, these must match with the existing exterior doors on the house.
8. The proposed garage doors must match in materials exactly with the existing on-site garage door.
9. The roof pitch shall be 8:12 as shown on the Saussy Burbank plans.
10. The detached garage must be located ten (10) feet from all property lines.
11. The entire perimeter of the garage (with the exception of door openings) must be landscaped with shrubs. The applicant must supply a landscaping plan within sixty (60) days after the completion of the garage. The plan will provide a layout of the shrub locations, plant types, height and size at installation. This plan will be subject to the approval of the ARB Committee.

XII. Other

1. Window Screens are not permitted on any of the front windows of the residence.
2. Pools must be located in the rear yard directly behind the residence, and be at least 10' from all property lines. All proposed fencing shall meet the Skybrook Fencing Guidelines. All pools must meet all city, state, and federal regulations.
3. All flags must either be American, North Carolina, or seasonal. All poles must be fastened to the house or house supports in a location that does not deter the exterior of the house. No flags will be permitted to hang on or from the roof of the house.
4. The erection of all antennae or other structures designed for receipt or transmission of television, radio, or other communication signals on any lot must have express written approvals from the ARB prior to installation. The installation of these dishes and antennae shall be made in the least visible location to the street and adjacent properties.
5. Any changes to external materials or color must be submitted to the ARB for approval prior to any work being performed on site. The homeowner must receive approvals for all colors or stains for the purpose of resurfacing or renewing any exterior building wall or any accessory structure surface (including but not limited to deck, playhouse, fence, etc).

XIII. Community Parks, Lakes, and Common Open Spaces

1. All parks, lakes, and common open spaces are private property owned by the Skybrook Homeowners Association.
2. The parks, lakes, and common open spaces are open from dawn to dusk.
3. The parks, lakes, and common spaces are for Skybrook residents and their accompanied guests only.
4. In order to facilitate equitable access and utilization of these limited community resources, Skybrook residents belonging to the Skybrook Homeowners Association may host no more than ten (10) guests per household at any given time within the boundaries of the community parks, lakes or common open spaces without the prior written permission of the Skybrook Board of Directors (by contacting the management company) which may be withdrawn at any time at the Board's discretion.
5. All residents are responsible for obeying HOA rules and ensuring their guests obey them. Residents are responsible for any damage or violation of these rules by their guests. Vandalism, damage or misuse and/or violations of the parks, lakes, and common open space rules by residents and their guests shall result in a fine to the hosting resident of not less than:

\$50.00 for the first offense

\$100.00 for the second offense

\$250.00 for the third and each subsequent offense

These fines are in addition to a special assessment to the hosting resident for the cost of replacing and/or repairing the property to its prior condition. Written notice and an opportunity for a hearing will be provided for the resident, however, the resident's non-attendance of the hearing will result in a "no contest" decision and will result in the immediate application of the fine and/or special assessment to their HOA account.

These penalties are separate and independent from any other criminal or civil action to which the violator(s) may be subject.

MAY 25 '99 04:51PM

FOR REGISTRATION JUDITH A. GIBSON
 REGISTER OF DEEDS
 MECKLENBURG COUNTY, NC
 1999 JUN 08 01:50 PM
 BOOK: 10530 PAGE: 272-300 FEE: \$62.00
 INSTRUMENT # 1999101747

STATE OF NORTH CAROLINA)
)
 COUNTIES OF MECKLENBURG)
)
 AND CABARRUS)

DECLARATION OF RESTRICTIONS,
 COVENANTS AND EASEMENTS

This Declaration of Restrictions, Covenants and Easements ("Declaration"), made as of this 26th day of April, 1999, by MVC, LLL, a North Carolina limited liability company (the "Declarant").

RECITALS:

1. Declarant is the owner of that certain tract or parcel of real property located near Charlotte, in Mecklenburg County and Cabarrus County, North Carolina, being more particularly described in Exhibit "A" attached hereto and made a part hereof by this reference, that it is in the process of developing into a residential subdivision (the "Residential Development").
2. Declarant has commenced and desires to complete the development of a portion of the Residential Development, being more particularly described in Exhibit "B" attached hereto and made a part hereof by this reference (such tract or parcel, and all buildings and facilities thereon at the time of conveyance to the Purchaser, together with all rights and the appurtenances belonging or appertaining thereto, being hereinafter referred to as the "Golf Course Property"), as a championship golf course and related facilities and amenities (the "Golf Course", which term includes the Golf Course Property on which it is being constructed).
3. Declarant has an option under existing contracts to buy additional land to be developed in conjunction with the Residential Development, such land being more particularly described in Exhibit "C" attached hereto and made a part hereof by this reference (the "Additional Land").
4. Declarant and Purchaser have entered into that certain Land Development and Purchase Agreement, dated April 26, 1999 (the "Agreement") pursuant to which the Purchaser will purchase the Golf Course Property on an installment contract basis and under certain other conditions contained therein. It is a material condition to the Agreement that Declarant subject the Residential Development to certain restrictions, covenants and easements in favor of the Golf Course Property prior to either the first conveyance of property in the Residential Development or the payment of the first installment due under the Agreement.
5. Declarant and Purchaser have agreed that the Golf Course Property shall also be subject to certain easements benefiting the Residential Development.

R#295028 v3 - DECL RESTRA& COV

Order: GVZ9HXG26

Address: 1829 S

Order Date: 10-0

Document not for resale

HomeWiseDocs

Prepared by and Return to: BOX 10 *(WSP)*

Parker, Poe, Adams & Bernstein LLP

2500 Charlotte Plaza

Charlotte, North Carolina 28244

*Wanda Carlyle Sandridge
 & Rice, LLC*

AGREEMENT:

NOW, THEREFORE, in consideration of the premises and the foregoing and other good and valuable consideration, the receipt and adequacy of which are hereby acknowledged by Declarant, the Declarant does hereby publish, declare and impose the following restrictions, covenants and easements on the Residential Development:

1. Definitions.

- (a) "Lot" shall mean and refer to any parcel of land within the Residential Development that is intended for use as a site for a dwelling unit or for multi-family dwelling units, as shown upon any plat of the Residential Development recorded in the County of Mecklenburg or Cabarrus, as appropriate, and consented to by the Declarant or its successors. The term "Lot" shall not include common area, streets, or the Golf Course.
- (b) "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot on the Residential Development. Notwithstanding any applicable theory of lien or mortgage law, "Owner" shall not mean or refer to any trust beneficiary unless and until such trust beneficiary has acquired title pursuant to foreclosure or any proceeding in lieu of foreclosure. "Owner" shall also mean and refer to tenants of any Lots for purposes hereof.
- (c) All other capitalized terms herein shall have the meanings ascribed to them elsewhere in this Declaration.

- 2. **Risks.** The Owner of each Lot acknowledges that owning property adjacent or in close proximity to a golf course involves certain risks that may have an effect on the use or enjoyment of such Lot. Each Owner acknowledges that such risks may include, for example but not limited to, errant golf balls hit onto such property potentially causing bodily injury to persons or physical damage to property, and further including golfers entering onto such property to look for such errant golf balls, and the mist or overspray of golf course irrigation onto a Lot. Each Owner hereby expressly assumes such risks and agrees that neither Declarant nor any other entity owning or managing the Golf Course shall be liable to any Owner or anyone claiming any loss or damage, including, without limitation, indirect, special or consequential loss or damage arising from personal injury, destruction of property, trespass or any other alleged wrong or entitlement to remedy based upon, due to, arising from or otherwise relating to the proximity of any Lot to the Golf Course, including, without limitation, any claim arising in whole or in part from the alleged negligence of Declarant or any other entity owning or managing the Golf Course. The Owner of each Lot hereby agrees, and agrees by its acceptance of a deed to property in the Residential Development, to indemnify

and hold harmless Declarant or any other entity owning or managing the Golf Course against any and all claims by the Owner and his guests, invitees or licensees with respect to the above. Nothing in this Section shall restrict or limit any power of Declarant or any other entity owning or managing the Golf Course to change the design of the Golf Course, and such changes, if any, shall not nullify, restrict or impair the covenants and duties of any Owner herein.

3. Reciprocal Utility Easements. The entire Residential Development, including the Golf Course Property, and the Additional Land (confirmation of which shall be made by the Declarant upon its acquisition of the Additional Land), is hereby subject to and benefited by non-exclusive utility easements over the Residential Development, including the Golf Course Property, and the Additional Land, such utility easements to be more specifically located by the Declarant and the Purchaser or their successors and assigns in the future as specific locations for such easements are identified.

4. Other Easements Benefiting the Golf Course.

- (a) The Residential Development and the Additional Land (confirmation of which shall be made by the Declarant upon its acquisition of the Additional Land), is hereby subject to fifty foot (50') and eighty-five foot (85') wide non-exclusive easements for the benefit of and appurtenant to the Golf Course Property, for the purpose of vehicular (including but not limited to golf carts) and pedestrian egress, ingress and regress, running over, across and through the Residential Property and the Additional Land, such easements to run in the locations of the roads ("Roads") shown on that certain development plan ("Plan") of the Residential Property entitled "Sketch Plan, Eastfield Road Project", dated November 30, 1998 and prepared by Yarborough-Williams & Associates, Inc., or in such locations as shall be determined by Declarant or its successors and assigns to be the location of the Roads so long as such location continues to provide access to the Golf Course Property substantially in accordance with the Plan. Provided, however, when Declarant or its successors and assigns has dedicated the Roads as shown on the Plan for public use and such dedications have been accepted by the State of North Carolina, the easement rights with respect to such dedicated portions of the Roads shall terminate.

Nothing in the foregoing grants the Golf Course owner, or the Golf Course's operator, members or guests, the right to park any motor vehicles on the portion of the Residential Development not comprising the Golf Course.

- (b) The Residential Development, including the Additional Land (confirmation of which shall be made by Declarant upon its acquisition of

the Additional Land), is hereby subject to approximately twenty foot (20') wide non-exclusive golf car path easements ("Path Easements") for the benefit of and appurtenant to the Golf Course Property for the purpose of golf cart and pedestrian egress, ingress and regress, running over, across and through the Residential Property and the Additional Land, such Path Easements to run in such locations as shall mutually be determined by Declarant and Purchaser, or their successors and assigns, such locations in any event providing access to the Golf Course Property in a manner that facilitates the use of the Golf Course Property as a golf course.

- (b) Every Lot is burdened with an easement permitting authorized golfers to do every act necessary and reasonably incident to the playing of golf on the golf course adjacent to the Lot, as well as an easement permitting golf balls to enter upon the Lot, and for golfers at reasonable times and in a reasonable manner to enter upon the exterior portions of the Lot to retrieve errant golf balls. Unless approved by the homeowners association and the owners of the Golf Course, Lots that are adjacent to the Golf Course may not be improved with fences or other barriers, within fifty (50) feet of the Golf Course Property, that would prevent entry by golfers to retrieve errant golf balls. Every Owner of every Lot by acceptance of delivery of a deed to the Lot, assumes all risks associated with errant golf balls, player entry onto property, and irrigation overspray, and each such Owner agrees and covenants not to make any claim or institute any action whatsoever against Declarant, the golf course designer, the Golf Course Owner or operator, or any other party relating to the design and utilization of the golf course or to any errant golf ball, any damages caused thereby, or for negligent design of the golf course or the siting of the Lot.

Notwithstanding the foregoing, however, golfers that enter any portion of any Lot shall be liable to the Owners thereof for any damage caused by such entry, including damage to improvements or landscaping on the Lot even if the entry is made for the retrieval of errant golf balls.

- (c) Declarant also reserves on behalf of the Golf Course the right to use the necessary and usual equipment upon the golf course, and every Owner acknowledges and accepts the potential for all common noises associated with using such equipment, at the hours of the day in which such equipment is typically used on a golf course, as well as the usual and common noises associated with the playing of the game of golf. Also reserved by Declarant is the right to do all such other common and usual activities associated with and necessary to the operation and maintenance of a golf facility, as well as a non-exclusive easement for ingress and egress over, across, and through all streets in the Residential Development for access to and from the Golf Course to Declarant, its successors and assigns, and the Golf Course, its operators, members and guests.

- (d) Any portion of the Residential Development immediately adjacent to the golf course that comprises a portion of the Golf Course is hereby burdened with a perpetual, non-exclusive easement, during the times, if any, when the Golf Course Property is being operated as a Golf Course, in favor of the Golf Course owner, for overspray of water from the irrigation system serving the Golf Course. Under no circumstances shall the Declarant, the Owners, the homeowners association, a neighborhood homeowners association, or the Golf Course owner be held liable for any damage or injury resulting from such overspray or the exercise of this easement.
5. Maintenance of Property Adjacent to the Golf Course. Subject to the limitation contained in this Section, Declarant hereby reserves in favor of the Golf Course owner, its operators, respective agents, employees, successors, and assigns, a perpetual, non-exclusive right and easement over and across each Lot that is adjacent to the fairways and greens of the Golf Course, which right and easement shall permit, but not obligate, the Golf Course owner or its operator, upon receiving permission from the Declarant to go upon such Lot, to maintain or landscape the area encumbered by such easement. Such maintenance and landscaping shall include the planting of grass, watering, application of fertilizer, mowing, and the removal of underbrush, stumps, trash or debris, and trees of less than three (3) inches in diameter at a level of four (4) feet above ground level. The area encumbered by this easement shall be limited to the portion of such Lot within thirty (30) feet of those boundary lines of such Lot that are adjacent to such fairways or greens.
6. Distractions. Owners of Lots adjacent to all golf course fairways and greens, as well as their families, tenants, guests, invitees and pets, shall be obligated to refrain, during the hours of normal operation of the Golf Course, from any actions which would detract from the playing qualities of the golf course. Such prohibited activities shall include, but not be limited to, maintenance of dogs or other pets under conditions which interfere with golf course play due to their loud barking or other actions, running or walking on the fairways or greens, picking up balls, or like interference with play.
7. Use of Golf Course. Notwithstanding anything herein to the contrary, the owner or owners of the Golf Course shall have the sole and exclusive right, from time to time, to determine the terms and conditions under which the Golf Course shall be available for play.

The foregoing restrictions, covenants and easements (the "Golf Course Covenants") may be waived, terminated, altered, and amended only with the written consent of the Purchaser, and only in its sole discretion. Notwithstanding the foregoing, however, the Declarant may encumber the Residential Development with more detailed and comprehensive restrictive covenants concerning the Residential Development ("Restrictive Covenants"), which may supercede and replace the restrictions, covenants and easements contained herein, but only if the following are all true with respect to the new, more detailed Restrictive Covenants:

- (i) The Restrictive Covenants include provisions substantially similar to the Golf Course Covenants;
- (ii) The Golf Course Covenants contained in the Restrictive Covenants run in favor of the Golf Course Property;
- (iii) The Restrictive Covenants are not subject to the interest of any lender, governmental authority or lien, or any other interest of the Golf Course Property;
- (iv) The Restrictive Covenants provide that the Golf Course Covenants cannot be amended, modified, terminated or otherwise changed or waived without the express written consent of the Golf Course Property Owner;
- (v) The Restrictive Covenants provide that the owner of the Golf Course Property shall be entitled to enforce the Golf Course Covenants in the same manner in which the Declarant or the homeowners association contemplated in the Restrictive Covenants may enforce the other terms of the Restrictive Covenants, and that any failure by the Golf Course Property owner to enforce the Golf Course Covenants shall not be deemed a waiver of the right to do so thereafter; and
- (vi) As the Declarant obtains title to any portion of the Additional Land, the Declarant shall encumber such property with the Golf Course Covenants, subject to the terms hereof, by recording a Supplemental Declaration extending the terms hereof to the Additional Land then owned by the Declarant.

IN WITNESS WHEREOF, Declarant has executed this Declaration of Restrictions, Covenants and Easements under seal as of the date first written above.

MVC, LLC,
a North Carolina limited liability company (SEAL)

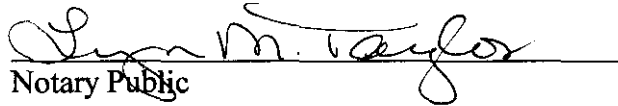
By: John T. Coley, IV (SEAL)

STATE OF NORTH CAROLINA

COUNTY OF MECKLENBURG

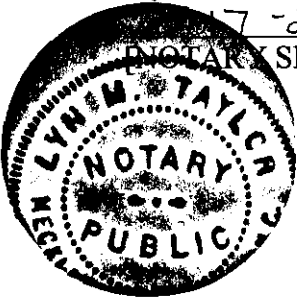
I, Lyn M. Taylor, a Notary public for said County and State, do hereby certify that John T. Coley, IV, Manager of MVC, LLC, a North Carolina limited liability company, personally appeared before me this day and acknowledged the due execution of the foregoing instrument on behalf of the company.

WITNESS my hand and official seal or stamp, this the 26th day of May, 1999.


Notary Public

My Commission expires:

7-2003
[NOTARY SEAL]



Schedule of Exhibits:

EXHIBIT A: Legal Description of the Residential Development

EXHIBIT B: Legal Description of the Golf Course Property

EXHIBIT C: Legal Description of the Additional Land

**EXHIBIT A
(RESIDENTIAL)
LEGAL DESCRIPTION**

Lying and being in Mallard Creek Township, Mecklenburg County and Township #3, Cabarrus County, North Carolina, and more particularly described as follows:

TRACT 1

Parcel A

To find the point and place of beginning, commence at G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 39-09-54 W 1,021.77 feet to an iron set having North Carolina Grid Coordinates of N = 608,844.767 and E = 1,476,387.293 (NAD 83), said iron marking the northernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 57, Cabarrus County Public Registry, said iron marking THE POINT AND PLACE OF BEGINNING and also lying on the southwestern boundary of the property conveyed to Robert M. Wallace by instrument recorded in Deed Book 450, Page 433, Cabarrus County Public Registry; thence running with the southwestern and northwestern boundaries of the Robert M. Wallace property (now or formerly) the following two (2) courses and distances: (1) N 41-15-58 W 418.87 to an iron set; and (2) N 55-21-18 E 1843.91 feet to an iron set; thence N 34-38-42 W 255.27 feet to an iron set; thence N 81-52-40 W 135.24 feet to an iron set on the southern boundary of the property conveyed to Dwayne Nelson Hensley by instrument recorded in Deed Book 571, Page 625, Cabarrus County Public Registry; thence with the southern and western boundaries of the Dwayne Nelson Hensley property (now or formerly) the following five (5) courses and distances: (1) S 81-39-48 W 586.55 feet to an iron set; (2) S 88-54-48 W 363.00 feet to an iron set; (3) N 74-20-12 W 280.50 feet to an iron set; (4) N 51-20-12 W 189.40 feet to an iron found; and (5) N 50-07-20 E 462.92 feet to a point lying on the centerline of Clarke Creek; thence with the centerline of Clarke Creek the following three (3) courses and distances: (1) N 48-14-17 W 442.12 feet to a point; (2) S 86-29-20 W 225.93 feet to a point; and (3) S 79-59-09 W 2,356.45 feet to a point lying on the eastern boundary of the property conveyed to John L. Lytle as shown in Map Book 6, Page 43, Mecklenburg County Public Registry; thence with the eastern boundary of the John L. Lytle property (now or formerly) S 06-09-44 E 186.27 feet to an iron found (passing an iron found at 27.00 feet); thence with the southern boundary of the John L. Lytle property (now or formerly) and the southern boundary of the property conveyed to Metrolina Greenhouses, Inc., by instrument recorded in Deed Book 4544, Page 782, Mecklenburg County Public Registry (also as shown in Map Book 6, Page 43, Mecklenburg County Public Registry) S 82-07-18 W 957.10 feet to an iron set (passing an iron found at 486.10 feet); thence with the western boundary of the Metrolina Greenhouses, Inc., property (now or formerly) N 01-05-16 W 157.86 feet to a point lying on the centerline of Clarke Creek; thence with the centerline of Clarke Creek the following thirteen (13) courses and distances: (1) S 78-52-23 W 18.66 feet to a point; (2) S 83-41-03 W 142.44 feet to a point; (3) S 75-03-34 W 84.77 feet to a point; (4) S 63-51-50 W 193.48 feet to a point; (5) S 47-02-52 W 251.59 feet to a point; (6) S 55-49-13 W 85.26 feet to a point; (7) S 38-35-26 W 103.67 feet to a point; (8) S 47-05-23 W 267.42 feet to a point; (9) S 47-39-37 W 261.38 feet to a point; (10) S 43-07-26 W 101.67 feet to a point; (11) S 58-19-43 W 71.70 feet to a point; (12) S 44-51-17 W 88.93 feet to a point; and (13) S 39-56-06 W 83.43 feet to a point; thence N 83-31-10 W 75.24 feet to an iron set on the eastern boundary of the property conveyed to Teunis Van Wingerden by instrument recorded in Deed Book 3976, Page 908, Mecklenburg County Public Registry; thence with the eastern and southern boundary of the Teunis Van Wingerden property (now or formerly) the following two courses and distances: (1) S 01-07-50 W 779.68 feet to an iron found; and (2) S 79-28-50 W 935.86 feet to a 24" oak found (passing an iron set at 895.86 feet); said 24" oak found lying on the northern boundary of the

property conveyed to Silas W. Davis by instrument recorded in Deed Book 1561, Page 229, Mecklenburg County Public Registry; thence with the northern and eastern boundaries of the Silas W. Davis property (now or formerly) the following ten (10) courses and distances: (1) S 64-43-29 E 935.33 feet to an iron found; (2) S 85-45-49 E 701.22 feet to an iron found; (3) S 87-47-13 E 445.64 feet to an iron found; (4) S 01-05-10 W 1,240.95 feet to an iron found; (5) S 07-36-08 W 174.93 feet to an iron found; (6) S 82-23-43 E 219.84 feet to an iron found; (7) S 02-02-09 W 198.87 feet to an iron found; (8) S 45-20-53 W 746.29 feet to an iron set; (9) S 50-32-25 W 128.66 feet to an iron found; and (10) S 46-06-37 W 71.56 feet to an iron set on the centerline of the two hundred foot (200') Duke Power Company right-of-way; thence with the centerline of the Duke Power Company right-of-way the following five (5) courses and distances: (1) N 73-27-53 E 850.80 feet to an iron set; (2) N 73-30-05 E 823.17 feet to an iron set; (3) N 73-27-48 E 231.74 feet to an iron set; (4) N 73-27-48 E 418.20 feet to an iron set; and (5) N 73-24-55 E 413.24 feet to an iron set on the southwestern boundary of the property conveyed to Lewis J. Hilton and Bobby R. Hilton by instruments recorded in Deed Book 5298, Page 483, Mecklenburg County Public Registry, and Deed Book 591, Page 245, Cabarrus County Public Registry; thence with the southwestern and northern boundaries of the Lewis J. Hilton and Bobby R. Hilton property (now or formerly) the following nine (9) courses and distances: (1) N 58-07-25 W 879.15 feet to an iron set; (2) N 16-53-26 E 127.62 feet to an iron found; (3) N 18-51-38 E 768.36 feet to an iron found; (4) N 13-45-20 E 187.04 feet to an iron found; (5) N 07-08-43 E 40.26 feet to an iron found; (6) S 85-28-28 E 601.17 feet to an iron found; (7) N 56-38-24 E 820.96 feet to an iron found; (8) S 45-24-16 E 296.70 feet to an iron found; and (9) N 74-10-55 E 560.77 feet to an iron found marking the westernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 57, Cabarrus County Public Registry; thence with the northwestern boundary of the Joseph O. Bracey property (now or formerly) N 52-20-48 E 569.44 feet to THE POINT AND PLACE OF BEGINNING.

Parcel B

To find the point and place of beginning, commence at G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 39-09-54 W 1,021.77 feet to an iron set having North Carolina Grid Coordinates of N = 608,844.767 and E = 1,476,387.293 (NAD 83), said iron marking the northernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 57, Cabarrus County Public Registry; thence with the northwestern boundary of the Joseph O. Bracey property (now or formerly) S 52-20-48 W 569.44 feet to an iron found on the northern boundary of the property conveyed to Lewis J. Hilton and Bobby R. Hilton by instruments recorded in Deed Book 5298, Page 483, Mecklenburg County Public Registry, and Deed Book 591, Page 245, Cabarrus County Public Registry; thence with the northern, western, and southwestern boundaries of the Lewis J. Hilton and Bobby R. Hilton property (now or formerly) the following ten (10) courses and distances: (1) S 74-10-55 W 560.77 feet to an iron found; (2) N 45-24-16 W 296.70 feet to an iron found; (3) S 56-38-24 W 820.96 feet to an iron found; (4) N 85-28-28 W 601.17 feet to an iron found; (5) S 07-08-43 W 40.26 feet to an iron found; (6) S 13-45-20 W 187.04 feet to an iron found; (7) S 18-51-38 W 768.36 feet to an iron found; (8) S 16-53-26 W 127.62 feet to an iron set; (9) S 58-07-25 E 879.15 feet to an iron set; and (10) S 58-07-25 E 68.66 feet to an iron set marking the POINT AND PLACE OF BEGINNING; thence continuing with the southwestern boundary of the Lewis J. Hilton and Bobby R. Hilton property (now or formerly) S 58-07-25 E 621.50 feet to an iron found marking the westernmost corner of the property conveyed to Lewis J. Hilton, Jr., by instrument recorded in Deed Book 459, Page 674, Cabarrus County Public Registry; thence with the southwestern boundary of the Lewis J. Hilton, Jr., property (now or formerly) S 56-59-38 E 598.94 feet to a point lying on the centerline of Allen Harris Road (State Road 1449) (passing an iron found at 576.05 feet); thence with the centerline of Allen Harris Road the following four (4) courses and distances: (1) with the arc of a circular curve to the right having a radius of 3,031.56 feet for an arc distance of 425.28 feet (said curve being subtended by a chord bearing S 58-14-25 W 424.94 feet) to a

point; (2) S 62-15-33 W 345.12 feet to a point; (3) with the arc of a circular curve to the left having a radius of 3,256.54 feet for an arc distance of 299.79 feet (said curve being subtended by a chord bearing S 59-37-19 W 299.68 feet) to a point; and (4) S 56-59-05 W 61.31 feet to a point; thence N 02-29-44 W 58.04 feet to an iron set; thence N 02-29-44 W 1,166.85 feet to the POINT AND PLACE OF BEGINNING.

Containing 397.761 acres, more or less, as shown on survey entitled "BOUNDARY SURVEY J. WOODLEY WALLACE & BETTY BELK WALLACE PROPERTY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) of Yarbrough-Williams & Associates, Inc., and dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT 2

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499; thence N 89-16-36 W 4,887.48 feet to an iron found having North Carolina Grid Coordinates N = 608,114.384 and E = 1,472,146.148 marking THE POINT AND PLACE OF BEGINNING, said iron also marking the northwest corner of the property conveyed to J. Woodley Wallace, Sr., by instrument recorded in Deed Book 4219, Page 858, Mecklenburg County Public Registry; thence with the western boundary of the J. Woodley Wallace, Sr., property (now or formerly) the following two (2) courses and distances: (1) S 01-05-10 W 1,240.95 feet to an iron found; and (2) S 07-36-08 W 174.93 feet to an iron found; thence N 82-02-18 W 2,327.44 feet to an iron found lying on the eastern boundary of the property conveyed to Johnsie Lee McAdoo by instrument recorded in Deed Book 866, Page 53, Mecklenburg County Public Registry; thence with the eastern boundary of the Johnsie Lee McAdoo property (now or formerly) the following three (3) courses and distances: (1) N 17-14-56 E 506.73 feet to an iron found; (2) N 17-21-03 E 392.63 feet to an iron found; and (3) N 18-28-42 W 672.33 feet to an iron found lying on the southern boundary of the property conveyed to Louisa C. McAuley by instrument recorded in Deed Book 3215, Page 73, Mecklenburg County Public Registry; thence with the southern boundary of the Louisa C. McAuley property (now or formerly) N 78-16-12 E 313.57 feet to a 24-inch oak found (passing an iron set at 273.57 feet) marking the southeastern corner of the Louisa C. McAuley property (now or formerly), the southwestern corner of the property conveyed to Teunis Van Wingerden by instrument recorded in Deed Book 3976, Page 908, Mecklenburg County Public Registry, and the westernmost corner of the property conveyed to J. Woodley Wallace by instrument recorded in Deed Book 4511, Page 557, Mecklenburg County Public Registry; thence with the southern boundary of the J. Woodley Wallace property (now or formerly) the following three (3) courses and distances: (1) S 64-43-29 E 935.33 feet to an iron found; (2) S 85-45-49 E 701.22 feet to an iron found; and (3) S 87-47-13 E 445.64 feet to THE POINT AND PLACE OF BEGINNING, containing 71.932 acres, more or less, as shown on survey entitled "MARY DAVIS PROPERTY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) of Yarbrough - Williams and Associates, Inc., dated October 7, 1998, reference to said survey being made in aid of this description.

TRACT 3

To find the point and place of beginning; commence at G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH have North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 27-31-37 W 499.65 feet to an iron found having North Carolina Grid Coordinates of N = 607,609.664 and E = 1,476,801.612, said iron marking the southern corner of the property conveyed to Keith P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry; thence S 04-43-34 W 139.93 feet to an iron found with the right-of-way of Allen Harris

Road (State Road 1449); thence S 20-28-38 W 374.12 feet to a point in the centerline of Allen Harris Road; thence with the centerline of Allen Harris Road the following four (4) courses and distances: (1) with the arc of a circular curve to the right having a radius of 1,598.95 feet for an arc distance of 124.81 feet (said curve being subtended by a chord bearing S 35-36-18 W 124.78 feet) to a point; (2) S 37-50-29 W 34.27 feet to a point; (3) with the arc of a circular curve to the right having a radius of 2,215.89 feet for an arc distance of 398.92 feet (said curve being subtended by a chord bearing S 42-59-55 W 398.38) feet to a point; and (4) S 48-09-22 W 112.81 feet to a point marking THE POINT AND PLACE OF BEGINNING; thence continuing with the centerline of Allen Harris Road the following three (3) courses and distances: (1) S 48-09-22 W 536.46 feet to a point; (2) S 48-09-22 W 214.30 feet to a point; and (3) with the arc of a circular curve to the right having a radius of 3,031.56 for an arc distance of 320.92 feet (said curve being subtended by a chord bearing S 51-11-19 W 320.78 feet) to a point marking the easternmost corner of Tract II of the property conveyed to John Woodley Wallace, Sr., by instrument recorded in Deed Book 3737, Page 816, Mecklenburg County Public Registry; thence with the northeastern boundary of the John Woodley Wallace, Sr., Tract II property (now or formerly) N 56-59-38 W 598.94 feet to an iron found (passing an iron found at 22.90 feet); thence N 46-30-22 E 129.82 feet to a point; thence N 16-35-05 W 356.73 feet to a point; thence with the arc of a circular curve to the left having a radius of 175.05 feet for an arc distance of 189.16 feet (said curve being subtended by a chord bearing N 47-32-33 W 180.09 feet) to a point; thence N 78-30-00 W 809.70 feet to a point; thence with the arc of a circular curve to the left having a radius of 20.00 feet for an arc distance of 31.42 feet (said curve being subtended by a chord bearing S 56-30-00 W 28.28 feet) to a point; thence S 11-30-00 W 93.45 feet to a point lying on the northeastern boundary of Tract I of the property conveyed to John Woodley Wallace, Sr., by instrument recorded in Deed Book 3737, Page 816, Mecklenburg County Public Registry; thence with the northeastern boundary of the John Woodley Wallace, Sr., Tract I property (now or formerly) N 58-07-25 W 419.77 feet to an iron set on the eastern boundary of the property conveyed to John Woodley Wallace, Sr., by instrument recorded in Deed Book 4219, Page 858, Mecklenburg County Public Registry; thence with the eastern boundary of the John Woodley Wallace, Sr., property (now or formerly) N 16-53-26 E 127.62 feet to an iron found marking the southeastern corner of the property conveyed to J. W. Brown and Thomas G. Brown by instrument recorded in Deed Book 1239, Page 42, Mecklenburg County Public Registry; thence with the eastern boundary of the J. W. Brown and Thomas G. Brown property (now or formerly) N 18-51-38 E 768.36 feet to a iron found marking the southeasternmost corner of the property conveyed to Walter W. Ewart and George W. Ewart by instrument recorded in Deed Book 2006, Page 272, Mecklenburg County Public Registry; thence with the southeastern boundary of the Walter W. Ewart and George W. Ewart property (now or formerly) N 13-45-20 E 187.04 feet to an iron found marking the southernmost corner of the property conveyed to Louise E. Shinn by instrument recorded in Deed Book 1635, Page 467, Mecklenburg County Public Registry; thence with the eastern boundary of the Louise E. Shinn property (now or formerly) N 07-08-43 E 40.26 feet to an iron found marking the southwestern corner of the property conveyed to J. Woodley Wallace and wife Betty Belk Wallace by instrument recorded in Deed Book 4607, Page 171, Mecklenburg County Public Registry; thence with the southern and southeastern boundaries of the J. Woodley Wallace and wife Betty Belk Wallace property (now or formerly) the following two (2) courses and distances: (1) S 85-28-28 E 601.17 feet to an iron found; and (2) N 56-38-24 E 92.78 feet to a point; thence S 04-12-13 W 168.90 feet to a point; thence S 16-32-49 E 200.00 feet to a point; thence S 46-59-06 E 112.75 feet to a point; thence S 02-47-25 W 183.09 feet to a point; thence S 49-20-18 W 80.43 feet to a point; thence S 65-03-53 W 67.00 feet to a point; thence N 78-30-00 W 89.81 feet to a point; thence N 73-03-35 W 105.48 feet to a point; thence N 78-30-00 W 105.00 feet to a point; thence S 11-30-00 W 150.00 feet to a point; thence N 78-30-00 W 200.00 feet to a point; thence with the arc of a circular curve to the right having a radius of 20.00 for an arc distance of 31.42 feet (said curve being subtended by a chord bearing N 33-30-00 W 28.28 feet) to a point; thence S 11-30-00 W 410.00 feet to a point; thence with the arc of a circular curve to the left having a radius of 20.00 feet for an arc distance of 31.42 feet (said curve being subtended by a chord bearing S 33-30-00 E 28.28 feet) to a point; thence S 78-30-00 E 809.70 feet to a point; thence with the arc of a circular curve to the right having a radius of 225.05 feet for an arc distance of 20.32 feet (said

curve being subtended by a chord bearing S 75-54-47 E 20.32 feet) to a point; thence with the arc of a circular curve to the left having a radius of 225.05 feet for an arc distance of 222.87 feet (said curve being subtended by a chord bearing S 44-57-19 E 213.87 feet) to a point; thence S 16-35-05 E 331.35 feet to a point; thence N 46-30-22 E 328.86 feet to an iron set; thence N 26-28-41 W 388.77 feet to a point; thence S 73-25-30 W 321.49 feet to a point; thence N 11-30-00 E 136.93 feet to a point; thence N 78-30-00 W 525.00 feet to a point; thence N 11-30-00 E 210.00 feet to a point; thence S 78-30-00 E 159.59 feet to a point; thence with the arc of a circular curve to the left having a radius of 275.00 feet for an arc distance of 216.08 feet (said curve being subtended by a chord bearing N 78-59-25 E 210.56 feet) to a point; thence N 56-28-50 E 153.93 feet to a point; thence with the arc of a circular curve to the right having a radius of 448.47 feet for an arc distance of 26.80 feet (said curve being subtended by a chord bearing N 58-11-33 E 26.80 feet) to a point; thence S 30-05-44 E 140.53 feet to a point; thence N 77-32-19 E 430.00 feet to a point; thence N 77-32-19 E 1075.16 feet to a point; thence S 50-18-54 E 356.62 feet to a point; thence S 73-27-42 W 497.16 feet to a point; thence S 73-27-59 W 392.38 feet to a point; thence S 62-44-38 E 909.69 feet (passing an iron set at 242.18 feet) to THE POINT AND PLACE OF BEGINNING; containing 49.353 acres, more or less, as shown as Phase 1 and Phase 2 on survey entitled "LEWIS J. HILTON PROPERTY," prepared by Sam F. Williams, North Carolina Registered Land Survey (Registration Number L-1768), of Yarbrough - Williams & Associates, Inc., dated October 7, 1998, reference to said survey being made in aid of this description.

TRACT "H"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 E 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 71-30-01 W 4,980.26 feet to an iron found having North Carolina Grid Coordinates of N = 606,472.676 and E = 1,472,310.301 (NAD 83); thence N 02-02-09 E 198.87 feet to an iron found; thence N 82-23-43 W 219.84 feet to an iron found; thence N 82-02-18 W 425.03 feet to a point marking the POINT AND PLACE OF BEGINNING; thence S 03-59-11 E 53.19 feet to a point; thence S 83-29-19 E 150.00 feet to a point; thence S 06-30-41 W 41.16 feet to a point; thence with the arc of a circular curve to the right having a radius of 225.24 feet for an arc distance of 102.53 feet (said curve being subtended by a chord bearing S 19-33-08 W 101.65 feet) to a point; thence S 32-35-36 W 81.93 feet to a point; thence S 85-34-05 W 248.63 feet to a point; thence S 76-09-03 W 402.36 feet to a point; thence N 79-29-47 W 502.36 feet to a point; thence N 62-06-35 W 868.25 feet to a point; thence N 10-04-46 E 57.94 feet to a point; thence with the arc of a circular curve to the right having a radius of 773.12 feet for an arc distance of 90.65 feet (said curve being subtended by a chord bearing N 13-26-18 E 90.59 feet) to a point; thence S 82-02-18 E 401.71 feet to a point; thence S 72-45-04 E 516.61 feet to a point; thence S 79-29-47 E 207.05 feet to a point; thence N 01-11-53 E 93.20 feet to a point; thence S 82-02-18 E 708.89 feet to the POINT AND PLACE OF BEGINNING, containing 14.931 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "I"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 E 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 71-30-01 W 4,980.26 feet to an iron found having North Carolina Grid Coordinates of N = 606,472.676 and E = 1,472,310.301 (NAD 83) marking the POINT AND PLACE OF BEGINNING; thence S 45-20-53 W 513.68 feet to a point; thence S 73-27-50 W 189.94 feet to a point; thence with the arc of a circular curve to the right having a radius of 294.21 feet for an arc distance of

290.48 feet (said curve being subtended by a chord bearing N 08-29-47 W 278.83 feet) to a point; thence N 87-54-45 E 173.51 feet to a point; thence N 32-35-36 E 60.40 feet to a point; thence N 57-24-24 W 151.05 feet to a point; thence N 31-57-13 E 97.23 feet to a point; thence S 82-58-17 E 315.81 feet to a point; thence N 67-01-05 E 162.21 feet to a point; thence S 02-02-09 W 107.75 feet to the POINT AND PLACE OF BEGINNING, containing 3.811 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "W"

To find the point and place of beginning; commence at G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH have North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 27-31-37 W 499.65 feet to an iron found having North Carolina Grid Coordinates of N = 607,609.664 and E = 1,476,801.612, said iron marking the southern corner of the property conveyed to Keith P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry, said iron marking THE POINT AND PLACE OF BEGINNING; thence S 04-43-34 W 139.93 feet to an iron found; thence S 20-28-38 W 18.99 feet to a point lying on the northern margin of the two hundred foot (200') wide Duke Power Company right-of-way; thence with the northern margin of the Duke Power Company right-of-way S 73-20-50 W 131.91 feet to a point; thence N 50-18-54 W 1,293.41 feet to a point; thence N 79-29-04 W 118.15 feet to a point; thence N 45-09-26 W 80.61 feet to a point; thence N 17-27-22 W 49.30 feet to a point; thence N 74-10-55 E 481.01 feet to an iron found marking the westernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 57, Cabarrus County Public Registry; thence with the southwestern boundary of the Joseph O. Bracey property (now or formerly) and the southwestern boundary of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 60, Cabarrus County Public Registry S 44-15-14 E 601.85 feet to an iron found marking the westernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 1533, Page 319, Cabarrus County Public Registry; thence with the southwestern boundary of the Joseph O. Bracey property (now or formerly) S 44-17-32 E 379.95 feet to an iron found marking the westernmost corner of the property conveyed to Kenneth P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry; thence with the southwestern boundary of the Kenneth P. Crig property (now or formerly) S 44-17-40 E 257.61 feet to THE POINT AND PLACE OF BEGINNING, containing 10.261 acres, more or less, more or less, as shown as Phase 3A on survey entitled "LEWIS J. HILTON PROPERTY," prepared by Sam F. Williams, North Carolina Registered Land Survey (Registration Number L-1768), of Yarbrough - Williams & Associates, Inc., dated October 7, 1998, reference to said survey being made in aid of this description.

TRACT "AA"

To find the point and place of beginning, commence at Geodetic Monument 018 FFH having NC Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 19-06-47 E 1,641.29 feet to G.P.S. Monument Set having NC Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence N 05-28-45 E 607.26 feet to an iron set; thence N 34-38-42 W 255.27 feet to an iron set; thence N 81-52-41 W 135.24 feet to an iron set marking THE POINT AND PLACE OF BEGINNING; thence S 81-39-48 W 586.55 feet to an iron set; thence S 88-54-48 W 363.00 feet to an iron set; thence N 74-20-12 W 280.50 feet to an iron set; thence N 51-20-12 W 189.40 feet to an iron found; thence N 50-07-20 E 357.12 feet to an iron set; thence S 44-29-56 E 245.58 feet to an iron set; thence S 80-19-47 E 928.27 feet to THE POINT AND PLACE OF BEGINNING, containing 5.456 acres, more or less, as shown on survey entitled: "A PORTION OF DWAYNE N. HENSLEY PROPERTY, A PORTION OF J. WOODLEY WALLACE PROPERTY, MECKLENBURG CO., AND CABARRUS COUNTY FOR BRYAN PROPERTIES, INC.,

“ drawn by Sam F. Williams, North Carolina Registered Land Surveyor (Registration Number L-1768), of Yarbrough - Williams & Associates, Inc., dated September 3, 1998, reference to said survey being made in aid of this description.

**EXHIBIT B
(GOLF COURSE)
LEGAL DESCRIPTION**

Lying and being in Mallard Creek Township, Mecklenburg County and Township #3, Cabarrus County, North Carolina, and more particularly described as follows:

TRACT "H"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 E 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 71-30-01 W 4,980.26 feet to an iron found having North Carolina Grid Coordinates of N = 606,472.676 and E = 1,472,310.301 (NAD 83); thence N 02-02-09 E 198.87 feet to an iron found; thence N 82-23-43 W 219.84 feet to an iron found; thence N 82-02-18 W 425.03 feet to a point marking the POINT AND PLACE OF BEGINNING; thence S 03-59-11 E 53.19 feet to a point; thence S 83-29-19 E 150.00 feet to a point; thence S 06-30-41 W 41.16 feet to a point; thence with the arc of a circular curve to the right having a radius of 225.24 feet for an arc distance of 102.53 feet (said curve being subtended by a chord bearing S 19-33-08 W 101.65 feet) to a point; thence S 32-35-36 W 81.93 feet to a point; thence S 85-34-05 W 248.63 feet to a point; thence S 76-09-03 W 402.36 feet to a point; thence N 79-29-47 W 502.36 feet to a point; thence N 62-06-35 W 868.25 feet to a point; thence N 10-04-46 E 57.94 feet to a point; thence with the arc of a circular curve to the right having a radius of 773.12 feet for an arc distance of 90.65 feet (said curve being subtended by a chord bearing N 13-26-18 E 90.59 feet) to a point; thence S 82-02-18 E 401.71 feet to a point; thence S 72-45-04 E 516.61 feet to a point; thence S 79-29-47 E 207.05 feet to a point; thence N 01-11-53 E 93.20 feet to a point; thence S 82-02-18 E 708.89 feet to the POINT AND PLACE OF BEGINNING, containing 14.931 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "I"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 E 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 71-30-01 W 4,980.26 feet to an iron found having North Carolina Grid Coordinates of N = 606,472.676 and E = 1,472,310.301 (NAD 83) marking the POINT AND PLACE OF BEGINNING; thence S 45-20-53 W 513.68 feet to a point; thence S 73-27-50 W 189.94 feet to a point; thence with the arc of a circular curve to the right having a radius of 294.21 feet for an arc distance of 290.48 feet (said curve being subtended by a chord bearing N 08-29-47 W 278.83 feet) to a point; thence N 87-54-45 E 173.51 feet to a point; thence N 32-35-36 E 60.40 feet to a point; thence N 57-24-24 W 151.05 feet to a point; thence N 31-57-13 E 97.23 feet to a point; thence S 82-58-17 E 315.81 feet to a point; thence N 67-01-05 E 162.21 feet to a point; thence S 02-02-09 W 107.75 feet to the POINT AND PLACE OF BEGINNING, containing 3.811 acres, more or less.

TRACT "J"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 89-09-07 W 5,332.98 feet to an iron found having North Carolina

Grid Coordinates of N = 608,131.590 and E = 1,471,700.907 (NAD 83); thence S 87-47-13 E 445.64 feet to an iron found; thence S 01-05-10 W 1,240.95 feet to an iron found; thence S 07-36-08 W 174.93 feet to an iron found; thence N 82-02-18 W 425.03 feet to a point marking the POINT AND PLACE OF BEGINNING; thence N 82-02-18 W 708.87 feet to a point; thence N 01-11-53 E 68.39 feet to a point; thence with the arc of a circular curve to the left having a radius of 375.00 feet for an arc distance of 188.35 feet (said curve being subtended by a chord bearing N 76-48-33 E 186.38 feet) to a point; thence N 62-25-13 E 65.35 feet to a point; thence with the arc of a circular curve to the right having a radius of 475.00 feet for an arc distance of 317.30 feet (said curve being subtended by a chord bearing N 81-33-27 E 311.44 feet) to a point; thence S 79-18-20 E 94.16 feet to a point; thence S 10-41-40 W 140.00 feet to a point; thence S 79-18-20 E 80.00 feet to a point; thence S 03-59-11 E 115.47 feet to the POINT AND PLACE OF BEGINNING, containing 2.941 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "K"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 89-09-07 W 5,332.98 feet to an iron found having North Carolina Grid Coordinates of N = 608,131.590 and E = 1,471,700.907 (NAD 83); said iron found marking the POINT AND PLACE OF BEGINNING; thence S 87-47-13 E 55.37 feet to a point; thence S 07-33-49 W 46.88 feet to a point; thence S 20-07-05 W 120.69 feet to a point; thence S 26-06-44 W 122.87 feet to a point; thence S 15-49-06 W 109.44 feet to a point; thence S 20-15-04 W 98.42 feet to a point; thence S 29-17-37 W 69.41 feet to a point; thence S 15-58-58 W 112.63 feet to a point; thence S 12-43-47 W 101.70 feet to a point; thence S 21-18-08 W 108.39 feet to a point; thence S 17-26-45 W 155.98 feet to a point; thence S 15-18-20 W 43.98 feet to a point; thence with the arc of a circular curve to the left having a radius 525.00 feet for an arc distance of 161.38 feet (said curve being subtended by a chord bearing S 77-42-46 W 160.74 feet) to a point; thence N 72-45-04 W 685.21 feet to a point; thence N 79-52-34 W 433.35 feet to a point; thence N 17-14-56 E 28.75 feet to a point; thence N 09-18-58 W 89.44 feet to a point; thence N 17-14-56 E 160.00 feet to a point; thence N 59-06-11 E 82.43 feet to a point; thence S 84-26-15 E 427.81 feet to a point; thence S 60-25-23 E 500.00 feet to a point; thence N 05-53-08 E 802.04 feet to a point; thence S 85-45-49 E 479.73 feet to the POINT AND PLACE OF BEGINNING; containing 17.261 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "L"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 89-09-07 W 5,332.98 feet to an iron found having North Carolina Grid Coordinates of N = 608,131.590 and E = 1,471,700.907 (NAD 83) marking the POINT AND PLACE OF BEGINNING; thence N 85-45-49 W 479.73 feet to a point; thence N 14-01-36 W 604.61 feet to an iron found marking the southeastern corner of the property conveyed to Teunis Van Wingerden by instrument recorded in Deed Book 3976, Page 908, Mecklenburg County Public Registry; thence with the eastern boundary of the Teunis Van Wingerden property (now or formerly) N 01-07-50 E 562.31 feet to a point; thence N 77-39-44 E 397.03 feet to a point; thence N 46-05-41 E 473.43 feet to a point; thence N 46-05-41 E 273.03 feet to a point; thence S 46-40-56 E 320.24 feet to a point; thence S 04-58-50 W

236.68 feet to a point; thence S 24-41-20 E 130.09 feet to a point; thence S 16-20-32 W 644.26 feet to a point; thence S 84-30-03 E 444.33 feet to a point; thence S 65-27-29 E 814.50 feet to a point; thence with the arc of a circular curve to the left having a radius of 275.00 feet for an arc distance of 63.29 feet (said curve being subtended by a chord bearing S 11-49-02 E 63.15 feet) to a point; thence S 18-24-38 E 82.37 feet to a point; thence N 81-24-42 W 1,609.94 feet to a point; thence S 14-03-16 W 17.37 feet to a point; thence S 03-45-12 W 88.97 feet to a point; thence S 05-27-59 E 76.68 feet to a point; thence S 22-43-11 E 95.03 feet to a point; thence S 07-33-49 W 47.28 feet to a point; thence N 87-47-13 W 55.37 feet to POINT AND PLACE OF BEGINNING, containing 40.228 acres, more or less.

TRACT "M"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 63-35-13 W 3,779.23 feet to a point having North Carolina Grid Coordinates of N = 609,733.585 and E = 1,473,648.295 marking the POINT AND PLACE OF BEGINNING; thence S 01-16-38 W 1095.79 feet to a point; thence with the arc of a circular curve to the right having a radius of 475.00 feet for an arc distance of 23.11 feet (said curve being subtended by a chord bearing S 83-22-55 W 23.11 feet) to a point; thence S 84-46-33 W 319.86 feet to a point; thence with the arc of a circular curve to the right having a radius of 287.76 feet for an arc distance of 149.50 feet (said curve being subtended by a chord bearing N 80-20-28 W 147.82 feet) to a point; thence N 65-27-29 W 57.77 feet to a point; thence N 01-27-59 W 920.11 feet to a point; thence N 14-13-17 E 176.24 feet to a point; thence S 88-43-22 E 544.57 feet to the POINT AND PLACE OF BEGINNING, containing 14.427 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACTS "N, O, Q, R AND S"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 74-17-30 W 3,601.39 feet to an iron set having North Carolina Grid Coordinates of N = 607,077.777 and E = 1,473,566.133 (NAD 83) marking the POINT AND PLACE OF BEGINNING; thence S 58-07-25 E 217.09 feet to a point; thence S 11-30-00 W 448.75 feet to a point lying on the northern margin of the two hundred foot (200') wide Duke Power Company right-of-way; thence with the northern margin of the Duke Power Company right-of-way the following three (3) courses and distances: (1) S 73-27-45 W 232.05 feet to a point; (2) S 73-27-45 W 83.28 feet to a point; and (3) S 73-27-50 W 1,447.26 feet to a point; thence N 16-32-10 W 93.72 feet to a point; thence N 45-20-53 E 513.68 feet to an iron found having North Carolina Grid Coordinates of N = 606,472.676 and E = 1,472,310.301 (NAD 83); thence N 02-02-09 E 107.75 feet to a point; thence N 67-01-05 E 633.47 feet to a point; thence N 32-19-12 E 271.44 feet to a point; thence N 71-00-20 E 148.15 feet to a point; thence N 54-31-38 E 220.85 feet to a point; thence N 54-31-38 E 117.09 feet to a point; thence N 26-58-08 E 161.17 feet to a point; thence N 03-41-43 E 510.05 feet to a point; thence N 03-41-43 E 89.37 feet to a point; thence N 86-18-17 W 154.29 feet to a point; thence with the arc of a circular curve to the left having a radius of 525.00 feet for an arc distance of 90.96 feet (said curve being subtended by a chord bearing N 13-26-49 W 90.85 feet) to a point; thence N 18-24-38 W 166.72 feet to a point; thence with the arc of a circular curve to the right having a radius of 225.00 feet for an arc distance of 51.78 feet (said curve being subtended by a chord bearing N 11-49-02 W 51.67 feet) to a point; thence N 05-13-27 W 189.84 feet to a point; thence with the arc of a circular curve to the right having a radius of 20.00 feet for an arc distance of 31.42 feet (said curve being subtended by a chord bearing N 39-46-33 E 28.28 feet) to a point; thence

N 84-46-33 E 274.86 feet to a point; thence with the arc of a circular curve to the left having a radius of 525.00 feet for an arc distance of 104.13 feet (said curve being subtended by a chord bearing N 79-05-38 E 103.96 feet) to a point; thence with the arc of a circular curve to the right having a radius of 20.00 feet for an arc distance of 28.61 feet (said curve being subtended by a chord bearing S 65-36-39 E 26.23 feet) to a point; thence S 24-37-58 E 425.64 feet to a point; thence S 07-28-22 W 59.84 feet to an iron found; thence S 07-08-43 W 15.96 feet to a point; thence S 65-22-02 W 99.89 feet to a point; thence S 18-41-03 E 151.17 feet to a point; thence S 13-45-20 W 21.56 feet to an iron found; thence S 18-51-38 W 768.36 feet to an iron found; thence S 16-53-26 W 127.62 feet to the POINT AND PLACE OF BEGINNING, containing 31.455 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "P"

To find the point and place of beginning, commence at G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 74-17-30 W 3,601.39 feet to an iron set having North Carolina Grid Coordinates of N = 607,077.777 and E = 1,473,566.133 (NAD 83) marking the POINT AND PLACE OF BEGINNING; thence N 16-53-26 E 127.62 feet to an iron found; thence N 18-51-38 E 768.36 feet to an iron found having North Carolina Grid Coordinates of N = 607,926.886 and E = 1,473,851.554; thence N 13-45-20 E 21.56 feet to a calculated point; thence S 18-41-03 E 47.33 feet to a calculated point; thence S 05-03-21 E 197.79 feet to a calculated point; thence S 08-03-41 W 201.25 feet to a calculated point; thence S 11-30-00 W 554.83 feet to a calculated point; thence N 58-07-25 W 217.09 feet to the POINT AND PLACE OF BEGINNING; containing 3.009 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "T"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 88-54-22 W 2,533.11 feet to an iron found having North Carolina Grid Coordinates of N = 608,101.028 and E = 1,474,500.236 (NAD 83) marking the POINT AND PLACE OF BEGINNING; thence N 85-28-28 W 342.20 feet to a point; thence N 21-15-41 W 613.06 feet to a point; thence with the arc of a circular curve to the right having a radius of 375.00 feet for an arc distance of 181.98 feet (said curve being subtended by a chord bearing N 88-46-12 E 180.20 feet) to a point; thence S 77-19-38 E 281.79 feet to a point; thence with the arc of a circular curve to the left having a radius of 275.00 feet for an arc distance of 75.27 feet (said curve being subtended by a chord bearing S 85-10-06 E 75.03 feet) to a point; thence S 16-32-49 E 92.62 feet to a point; thence S 07-53-17 W 87.87 feet to a point; thence S 40-58-56 E 87.87 feet to a point; thence S 16-32-49 E 160.00 feet to an iron set; thence S 04-12-14 W 87.75 feet to a point; thence S 56-38-24 W 92.78 feet to the POINT AND PLACE OF BEGINNING; containing 6.117 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "U"

To find the point and place of beginning, commence at G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 88-54-22 W 2,533.11 feet to an iron found having North Carolina Grid Coordinates of N = 608,101.028 and E = 1,474,000.236 (NAD 83) marking the POINT AND PLACE OF BEGINNING; thence N 56-38-24 E 92.78 feet to a calculated point; thence S 04-12-14 W 168.90 feet to a calculated point; thence S 16-32-49 E 200.00 feet to a calculated point; thence S 46-59-06 E 112.75 feet to a calculated point; thence S 02-47-25 W 183.09 feet to a calculated point; thence S 49-20-18 W 80.43 feet to a calculated point; thence S 65-03-53 W 67.00 feet to a calculated point; thence N 78-30-00 W 89.81 feet to a calculated point; thence N 73-03-35 W 105.48 feet to a calculated point; thence N 78-30-00 W 105.00 feet to a calculated point; thence N 11-30-00 E 194.65 feet to a calculated point; thence N 21-15-41 W 446.68 feet to a calculated point; thence S 85-28-28 E 342.20 feet to the POINT AND PLACE OF BEGINNING; containing 5.400 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "V"

To find the point and place of beginning, commence at G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 63-15-27 W 1,179.25 feet to a calculated point having North Carolina Grid Coordinates of N = 607,522.122 and E = 1,475,979.544 marking the POINT AND PLACE OF BEGINNING; thence S 50-18-54 E 356.62 feet to a point lying on the northern margin of the two hundred foot (200') Duke Power Co. right-of-way; thence with the northern margin of the two hundred foot (200') Duke Power Co. right-of-way the following three (3) courses and distances: (1) S 73-27-42 W 497.16 feet to a calculated point; (2) S 73-27-59 W 600.59 feet to a calculated point; and (3) S 73-25-30 W 429.11 feet to a calculated point; thence leaving the northern margin of the two hundred foot (200') Duke Power Co. right-of-way N 11-30-00 E 136.93 feet to a calculated point; thence N 78-30-00 W 525.00 feet to a calculated point; thence N 11-30-00 E 210.00 feet to a calculated point; thence S 78-30-00 E 159.59 feet to a calculated point; thence with the arc of a circular curve to the left having a radius of 275.00 feet for an arc distance of 216.08 feet (said curve being subtended by a chord bearing N 78-59-25 E 210.56 feet) to a calculated point; thence N 56-28-50 E 153.93 feet to a calculated point; thence with the arc of a circular curve to the right having a radius of 448.47 feet for an arc distance of 26.80 feet (said curve being subtended by a chord bearing N 58-11-33 E 26.80 feet) to a calculated point; thence S 30-05-44 E 140.53 feet to a calculated point; thence N 77-32-19 E 1,075.16 feet to the POINT AND PLACE OF BEGINNING; containing 13.554 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "W"

To find the point and place of beginning; commence at G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH have North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 27-31-37 W 499.65 feet to an iron found having North Carolina Grid Coordinates of N = 607,609.664 and E = 1,476,801.612, said iron marking the southern corner of the

property conveyed to Keith P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry, said iron marking THE POINT AND PLACE OF BEGINNING; thence S 04-43-34 W 139.93 feet to an iron found; thence S 20-28-38 W 18.99 feet to a point lying on the northern margin of the two hundred foot (200') wide Duke Power Company right-of-way; thence with the northern margin of the Duke Power Company right-of-way S 73-20-50 W 131.91 feet to a point; thence N 50-18-54 W 1,293.41 feet to a point; thence N 79-29-04 W 118.15 feet to a point; thence N 45-09-26 W 80.61 feet to a point; thence N 17-27-22 W 49.30 feet to a point; thence N 74-10-55 E 481.01 feet to an iron found marking the westernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 57, Cabarrus County Public Registry; thence with the southwestern boundary of the Joseph O. Bracey property (now or formerly) and the southwestern boundary of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 60, Cabarrus County Public Registry S 44-15-14 E 601.85 feet to an iron found marking the westernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 1533, Page 319, Cabarrus County Public Registry; thence with the southwestern boundary of the Joseph O. Bracey property (now or formerly) S 44-17-32 E 379.95 feet to an iron found marking the westernmost corner of the property conveyed to Kenneth P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry; thence with the southwestern boundary of the Kenneth P. Crig property (now or formerly) S 44-17-40 E 257.61 feet to THE POINT AND PLACE OF BEGINNING, containing 10.261 acres, more or less, more or less, as shown as Phase 3A on survey entitled "LEWIS J. HILTON PROPERTY," prepared by Sam F. Williams, North Carolina Registered Land Survey (Registration Number L-1768), of Yarbrough - Williams & Associates, Inc., dated October 7, 1998, reference to said survey being made in aid of this description.

TRACT "X"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 39-09-54 W 1,021.77 feet to an iron set having North Carolina Grid Coordinates of N = 608,844.767 and E = 1,476,387.293 (NAD 83) marking the POINT AND PLACE OF BEGINNING; said iron also marking the northernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 57, Cabarrus County Public Registry; thence with the northwestern boundary of the Joseph O. Bracey property (now or formerly) S 52-20-48 W 569.44 feet to an iron found; thence S 74-10-55 W 481.01 feet to a point; thence N 17-27-22 W 107.81 feet to a point; thence N 63-06-41 E 125.76 feet to a point; thence N 25-44-58 E 556.48 feet to a point; thence N 00-53-21 E 505.04 feet to a point; thence N 77-15-00 E 290.23 feet to a point; thence N 47-19-17 E 118.61 feet to a point; thence N 22-24-32 E 447.48 feet to a point; thence S 77-44-25 E 267.21 feet to a point; thence S 12-15-35 W 640.77 feet to a point lying on the northwestern boundary of the property conveyed to Robert M. Wallace by instrument recorded in Deed Book 450, Page 433, Cabarrus County Public Registry; thence with the northwestern and southwestern boundaries of the Robert M. Wallace property (now or formerly) the following two (2) courses and distances: (1) S 55-21-18 W 435.12 feet to an iron set; and (2) S 41-15-58 E 418.87 feet to THE POINT AND PLACE OF BEGINNING; containing 17.588 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "Y"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 61-51-47 W 2,475.80 feet to a point having North Carolina Grid

Coordinates of N = 609,220.040 and E = 1,474,849.607 (NAD 83) marking the POINT AND PLACE OF BEGINNING; thence S 78-16-39 W 189.55 feet to a point; thence S 31-26-02 W 409.36 feet to a point; thence S 80-46-14 W 132.02 feet to a point on the Mecklenburg - Cabarrus County Line, thence with the Mecklenburg - Cabarrus County Line (now or formerly) S 11-30-00 W 100.00 feet to a point; thence N 77-19-38 W 176.71 feet to a point; thence N 12-40-22 E 329.85 feet to a point; thence N 31-31-48 E 731.48 feet to a point; thence N 13-43-09 W 773.40 feet to a point; thence N 10-00-51 W 416.36 feet to a point; thence N 79-59-09 E 1,483.58 feet to a point; thence N 86-29-20 E 225.93 feet to a point; thence S 48-14-17 E 442.12 feet to a point; thence S 50-07-20 W 462.92 feet to an iron found; thence S 51-20-12 E 189.40 feet to an iron set; thence S 74-20-12 E 280.50 feet to an iron set; thence N 88-54-48 E 363.00 feet to an iron set; thence N 81-39-48 E 586.55 feet to an iron set; thence S 81-52-40 E 135.24 feet to an iron set; thence S 81-39-48 W 211.90 to a point; thence S 52-15-53 W 168.61 feet to a point; thence S 78-48-38 W 267.05 feet to a point; thence N 80-17-05 W 880.00 feet to a point; thence N 87-59-24 W 683.07 feet to a point; thence S 34-03-00 W 260.89 feet to a point; thence S 68-19-12 W 321.68 feet to a point; thence S 15-12-20 E 260.24 feet to a point; thence S 21-26-00 E 80.50 feet to a point; thence S 04-58-49 E 83.80 feet to a point; thence S 31-26-02 W 224.42 feet to a point; thence S 12-03-04 W 129.79 feet to a point; thence S 15-27-27 E 130.40 feet to the POINT AND PLACE OF BEGINNING, containing 44.537 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "Z"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 89-09-07 W 5,332.98 feet to an iron found having North Carolina Grid Coordinates of N = 608,131.590 and E = 1,471,700.907 (NAD 83); thence S 87-47-13 E 445.64 feet to an iron found; thence S 01-05-10 W 1,240.95 feet to an iron found; thence S 07-36-08 W 174.93 feet to an iron found; thence N 82-02-18 W 425.03 feet to a point, thence N 82-02-18 W 708.87 feet to a point; thence N 82-02-18 W 705.69 feet to a point marking the POINT AND PLACE OF BEGINNING; thence S 82-02-18 W 401.72 feet to a point; thence N 17-14-56 E 64.83 feet to a point having North Carolina Grid Coordinates of N = 607,072.779 and E = 1,469,899.341 (NAD 83); thence S 72-45-04 E 396.45 feet to the POINT AND PLACE OF BEGINNING, containing 0.295 acres, more or less, as shown on survey entitled "GOLF COURSE BOUNDARY SURVEY," prepared by Sam F. Williams, North Carolina Registered Land Surveyor (No. L-1768) Yarbrough - Williams & Associates, Inc., dated October 22, 1998, reference to said survey being made in aid of this description.

TRACT "AA"

To find the point and place of beginning, commence at Geodetic Monument 018 FFH having NC Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence N 19-06-47 E 1,641.29 feet to G.P.S. Monument Set having NC Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence N 05-28-45 E 607.26 feet to an iron set; thence N 34-38-42 W 255.27 feet to an iron set; thence N 81-52-41 W 135.24 feet to an iron set marking THE POINT AND PLACE OF BEGINNING; thence S 81-39-48 W 586.55 feet to an iron set; thence S 88-54-48 W 363.00 feet to an iron set; thence N 74-20-12 W 280.50 feet to an iron set; thence N 51-20-12 W 189.40 feet to an iron found; thence N 50-07-20 E 357.12 feet to an iron set; thence S 44-29-56 E 245.58 feet to an iron set; thence S 80-19-47 E 928.27 feet to THE POINT AND PLACE OF BEGINNING, containing 5.456 acres, more or less, as shown on survey entitled: "A PORTION OF DWAYNE N. HENSLEY PROPERTY, A PORTION OF J. WOODLEY WALLACE PROPERTY, MECKLENBURG CO., AND CABARRUS COUNTY FOR BRYAN PROPERTIES, INC., " drawn by Sam F. Williams, North Carolina Registered Land Surveyor (Registration Number L-1768),

of Yarbrough - Williams & Associates, Inc., dated September 3, 1998, reference to said survey being made in aid of this description.

ALL OF THE FOREGOING TOGETHER WITH those certain rights, restrictions and easements benefitting the foregoing tracts pursuant to that certain Declaration of Restrictions, Covenants and Easements made by MVC, LLC, encumbering certain property identified therein as the Residential Development, and recorded in Mecklenburg and Cabarrus County of even date herewith.

EXHIBIT C
LEGAL DESCRIPTION

Lying and being in Township #3, Cabarrus County, and Mallard Creek Township, Mecklenburg County, North Carolina, and more particularly described as follows:

To find the point and place of beginning; commence at G.P.S. Monument have North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH have North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 27-31-37 W 499.65 feet to an iron found having North Carolina Grid Coordinates of N = 607,609.664 and E = 1,476,801.612, said iron marking the southern corner of the property conveyed to Keith P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry; said iron marking THE POINT AND PLACE OF BEGINNING; thence S 04-43-34 W 139.93 feet to an iron found; thence S 20-28-38 W 374.12 feet to a point lying on the centerline of Allen Harris Road (State Road 1449) thence with the centerline of Allen Harris Road the following four (4) courses and distances: (1) with the arc of a circular curve to the right having a radius of 1,598.95 feet for an arc distance of 124.81 feet (said curve being subtended by a chord bearing S 35-36-18 W 124.78 feet) to a point; (2) S 37-50-29 W 34.27 feet to a point (3) with the arc of a circular curve to the right having a radius of 2,215.89 feet for an arc distance of 398.92 feet (said curve being subtended by a chord bearing S 42-59-55 W 398.38 feet) to a point; and (4) S 48-09-22 W 112.81 feet to a point; thence with the line of the property conveyed to Lewis J. Hilton, Jr. by deed recorded in Deed Book 459 at Page 674, Cabarrus County Registry, (now or formerly) N 62 44 38 W 667.51 feet to an iron set, thence with the line of the Lewis J. Hilton, Jr. (now or formerly) S 546-30-22 W 475.15 to iron set marking a corner of the property conveyed to Bobby Ray Hilton by deed recorded in Deed Book 459, Page 673, Cabarrus County Registry, and thence with the line of Bobby Ray Hilton (now or formerly) S 46-30-22 W 514.75 feet to an iron found marking to a point marking the northeastern boundary of Tract II of the property conveyed to John Woodley Wallace, Sr., by instrument recorded in Deed Book 3737, Page 816, Mecklenburg County Public Registry; thence with the northeastern boundary of the John Woodley Wallace, Sr., Tract II property (now or formerly) the northeastern boundary of the property conveyed to John Woodley Wallace, Sr., and wife, Betty Belk Wallace by instrument recorded in Deed Book 3737, Page 816; and the northeastern boundary of Tract I of the property conveyed to John Woodley Wallace, Sr., by instrument recorded in Deed Book 3737, Page 816, Mecklenburg County Public Registry N 58-07-25 W 1,786.60 feet to an iron found lying on the eastern boundary of the property conveyed to John Woodley Wallace, Sr., by instrument recorded in Deed Book 4219, Page 858, Mecklenburg County Public Registry; thence N 16-53-26 E 127.62 feet to an iron found marking the southeastern corner of the property conveyed to J. W. Brown & Thomas G. Brown by instrument recorded in Deed Book 1239, Page 42, Mecklenburg County Public Registry; thence with the eastern boundary of the J. W. Brown & Thomas G. Brown property (now or formerly) N 18-51-38 E 768.36 feet to an iron found marking the southeasternmost corner of the property conveyed to Walter W. Ewart & George W. Ewart by instrument recorded in Deed Book 2006, Page 272, Mecklenburg County Public Registry; thence with the southeastern boundary of the Walter W. Ewart & George W. Ewart property (now or formerly) N 13-45-20 E 187.04 feet to an iron found marking the southernmost corner of the property conveyed to Louise E. Shinn by instrument recorded in Deed Book 1635, Page 467, Mecklenburg County Public Registry; thence with the southeastern boundary of the Louise E. Shinn property (now or formerly) N 07-08-43 E 40.26 feet to an iron found lying on the southern boundary of the property conveyed to J. Woodley Wallace & wife, Betty Belk Wallace by instrument recorded in Deed Book 4607, Page 171, Mecklenburg County Public Registry; thence with the southern boundary of the J. Woodley Wallace & wife, Betty Belk Wallace property (now or formerly) the following four (4) courses and distances:

(1) S 85-28-28 E 601.17 feet to an iron found; (2) N 56-38-24 E 820.96 feet to an iron found; (3) S 45-24-16 E 296.70 feet to an iron found; and (4) N 74-10-55 E 560.77 feet to an iron found marking the westernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 57, Cabarrus County Public Registry; thence with the southwestern boundary of the Joseph O. Bracey property (now or formerly) and the southwestern boundary of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 60, Cabarrus County Public Registry S 44-15-14 E 601.85 feet to an iron found marking the westernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 1533, Page 319, Cabarrus County Public Registry; thence with the southwestern boundary of the Joseph O. Bracey property (now or formerly) S 44-17-32 E 379.95 feet to an iron found marking the westernmost corner of the property conveyed to Kenneth P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry; thence with the southwestern boundary of the Kenneth P. Crig property (now or formerly) S 44-17-40 E 257.61 feet to THE POINT AND PLACE OF BEGINNING, containing 107.024 acres, more or less, as shown on survey entitled "LEWIS J. HILTON PROPERTY," prepared by Sam F. Williams, North Carolina Registered Land Survey (Registration Number L-1768), of Yarbrough - Williams & Associates, Inc., dated October 7, 1998, reference to said survey being made in aid of this description.

LESS AND EXCEPT THE FOLLOWING TWO (2) TRACTS

Tract I

To find the point and place of beginning; commence at G.P.S. Monument have North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH have North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 27-31-37 W 499.56 feet to an iron found having North Carolina Grid Coordinates of N = 607,609.664 and E = 1,476,801.612, said iron marking the southern corner of the property conveyed to Keith P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry; thence S 04-43-34 W 139.93 feet to an iron found with the right-of-way of Allen Harris Road (State Road 1449); thence S 20-28-38 W 374.12 feet to a point in the centerline of Allen Harris Road; thence with the centerline of Allen Harris Road the following four (4) courses and distances: (1) with the arc of a circular curve to the right having a radius of 1,598.95 feet for an arc distance of 124.81 feet (said curve being subtended by a chord bearing S 35-36-18 W 124.78 feet) to a point; (2) S 37-50-29 W 34.27 feet to a point; (3) with the arc of a circular curve to the right having a radius of 2,215.89 feet for an arc distance of 398.92 feet (said curve being subtended by a chord bearing S 42-59-55 W 398.38 feet) to a point; and (4) S 48-09-22 W 112.81 feet to a point marking THE POINT AND PLACE OF BEGINNING; thence continuing with the centerline of Allen Harris Road the following three (3) courses and distances: (1) S 48-09-22 W 536.46 feet to a point; (2) S 48-09-22 W 214.30 feet to a point; and (3) with the arc of a circular curve to the right having a radius of 3,031.56 for an arc distance of 320.92 feet (said curve being subtended by a chord bearing S 51-11-19 W 320.78 feet) to a point marking the easternmost corner of Tract II of the property conveyed to John Woodley Wallace, Sr., by instrument recorded in Deed Book 3737, Page 816, Mecklenburg County Public Registry; thence with the northeastern boundary of the John Woodley Wallace, Sr., Tract II property (now or formerly) N 56-59-38 W 598.94 feet to an iron found (passing an iron found at 22.90 feet); thence N 46-30-22 E 129.98 feet to a point; thence N 16-35-05 W 356.73 feet to a point; thence with the arc of a circular curve to the left having a radius of 175.05 feet for an arc distance of 189.16 feet (said curve being subtended by a chord bearing N 47-32-33 W 180.09 feet) to a point; thence N 78-30-00 W 809.70 feet to a point; thence with the arc of a circular curve to the left having a radius of 20.00 feet for an arc distance of 31.42 feet (said curve being subtended by a chord bearing S 56-30-

00 W 28.28 feet) to a point; thence S 11-30-00 W 93.45 feet to a point lying on the northeastern boundary of Tract I of the property conveyed to John Woodley Wallace, Sr., by instrument recorded in Deed Book 3737, Page 816, Mecklenburg County Public Registry; thence with the northeastern boundary of the John Woodley Wallace, Sr., Tract I property (now or formerly) N 58-07-25 W 202.68 feet to an iron set on the eastern boundary of the property conveyed to John Woodley Wallace, Sr., by instrument recorded in Deed Book 4219, Page 858, Mecklenburg County Public Registry; thence with the eastern boundary of the John Woodley Wallace, Sr., property (now or formerly) N 16-53-26 E 127.62 feet to an iron found marking the southeastern corner of the property conveyed to J. W. Brown and Thomas G. Brown by instrument recorded in Deed Book 1239, Page 42, Mecklenburg County Public Registry; thence with the eastern boundary of the J. W. Brown and Thomas G. Brown property (now or formerly) N 18-51-38 E 768.36 feet to a iron found marking the southeasternmost corner of the property conveyed to Walter W. Ewart and George W. Ewart by instrument recorded in Deed Book 2006, Page 272, Mecklenburg County Public Registry; thence with the southeastern boundary of the Walter W. Ewart and George W. Ewart property (now or formerly) N 13-45-20 E 187.04 feet to an iron found marking the southernmost corner of the property conveyed to Louise E. Shinn by instrument recorded in Deed Book 1635, Page 467, Mecklenburg County Public Registry; thence with the eastern boundary of the Louise E. Shinn property (now or formerly) N 07-08-43 E 40.26 feet to an iron found marking the southwestern corner of the property conveyed to J. Woodley Wallace and wife Betty Belk Wallace by instrument recorded in Deed Book 4607, Page 171, Mecklenburg County Public Registry; thence with the southern and southeastern boundaries of the J. Woodley Wallace and wife Betty Belk Wallace property (now or formerly) the following two (2) courses and distances: (1) S 85-28-28 E 573.32 feet to an iron found; and (2) N 56-38-24 E 92.78 feet to a point; thence S 04-12-13 W 168.90 feet to a point; thence S 16-32-49 E 200.00 feet to a point; thence S 46-59-06 E 112.75 feet to a point; thence S 02-47-25 W 183.09 feet to a point; thence S 49-20-18 W 80.43 feet to a point; thence S 65-03-53 W 67.00 feet to a point; thence N 78-30-00 W 89.81 feet to a point; thence N 73-03-35 W 105.48 feet to a point; thence S 78-30-00 W 105.00 feet to a point; thence S 11-30-00 W 150.00 feet to a point; thence N 78-30-00 W 200.00 feet to a point; thence with the arc of a circular curve to the right having a radius of 20.00 for an arc distance of 31.42 feet (said curve being subtended by a chord bearing N 33-30-00 W 28.28 feet) to a point; thence S 11-30-00 W 410.00 feet to a point; thence with the arc of a circular curve to the left having a radius of 20.00 feet for an arc distance of 31.42 feet (said curve being subtended by a chord bearing S 33-30-00 E 28.28 feet) to a point; thence S 78-30-00 E 809.70 feet to a point; thence with the arc of a circular curve to the right having a radius of 225.05 feet for an arc distance of 20.32 feet (said curve being subtended by a chord bearing S 75-54-47 E 20.32 feet) to a point; thence with the arc of a circular curve to the left having a radius of 225.05 feet for an arc distance of 222.87 feet (said curve being subtended by a chord bearing S 44-57-19 E 213.87 feet) to a point; thence S 16-35-05 E 331.35 feet to a point; thence N 46-30-22 E 328.86 feet to an iron set; thence N 26-28-41 W 388.77 feet to a point; thence S 73-25-30 W 321.49 feet to a point; thence N 11-30-00 E 136.93 feet to a point; thence N 78-30-00 W 525.00 feet to a point; thence N 11-30-00 E 30.00 feet to a point; thence N 78-30-00 W 105.00 feet to a point; thence N 11-30-00 E 180.00 feet to a point; thence S 78-30-00 E 264.59 feet to a point; thence with the arc of a circular curve to the left having a radius of 275.00 feet for an arc distance of 216.08 feet (said curve being subtended by a chord bearing N 78-50-25 E 210.56 feet) to a point; thence N 56-28-50 E 153.93 feet to a point; thence with the arc of a circular curve to the right having a radius of 448.47 feet for an arc distance of 26.80 feet (said curve being subtended by a chord bearing N 58-11-33 E 26.80 feet) to a point; thence S 30-05-44 E 140.53 feet to a point; thence N 77-32-19 E 430.00 feet to a point; thence N 77-32-19 E 1075.16 feet to a point; thence S 50-18-54 E 356.62 feet to a point; thence S 73-27-42 W 497.16 feet to a point; thence S 73-27-59 W 392.38 feet to a point; thence S 62-44-38 E 909.69 feet (passing an iron set at 242.18 feet) to THE POINT AND PLACE OF BEGINNING; containing 49.353 acres, more or less, as shown as Phase 1 and

Phase 2 on survey entitled "LEWIS J. HILTON PROPERTY," prepared by Sam F. Williams, North Carolina Registered Land Survey (Registration Number L-1768), of Yarbrough - Williams & Associates, Inc., dated October 7, 1998, reference to said survey being made in aid of this description.

Tract 2

To find the point and place of beginning; commence at G.P.S. Monument have North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83); thence S 19-06-47 W 1,641.29 feet to Geodetic Monument 018 FFH have North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 27-31-37 W 499.56 feet to an iron found having North Carolina Grid Coordinates of N = 607,609.664 and E = 1,476,801.612, said iron marking the southern corner of the property conveyed to Keith P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry, said iron marking THE POINT AND PLACE OF BEGINNING; S 44-17-40 E 257.61 feet to a point; thence S 04-43-34 W 139.93 feet to an iron found; thence S 20-28-38 W 18.99 feet to a point lying on the northern margin of the two hundred foot (200') wide Duke Power Company right-of-way; thence with the northern margin of the Duke Power Company right-of-way S 73-20-50 W 131.91 feet to a point; thence N 50-18-54 W 1,293.41 feet to a point; thence N 79-29-04 W 118.15 feet to a point; thence N 45-09-26 W 80.61 feet to a point; thence N 17-27-22 W 49.30 feet to a point; thence N 74-10-55 E 560.77 feet to an iron found marking the westernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 57, Cabarrus County Public Registry; thence with the southwestern boundary of the Joseph O. Bracey property (now or formerly) and the southwestern boundary of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 842, Page 60, Cabarrus County Public Registry S 44-15-14 E 601.85 feet to an iron found marking the westernmost corner of the property conveyed to Joseph O. Bracey by instrument recorded in Deed Book 1533, Page 319, Cabarrus County Public Registry; thence with the southwestern boundary of the Joseph O. Bracey property (now or formerly) S 44-17-32 E 379.95 feet to an iron found marking the westernmost corner of the property conveyed to Kenneth P. Crig by instrument recorded in Deed Book 557, Page 290, Cabarrus County Public Registry; thence with the southwestern boundary of the Kenneth P. Crig property (now or formerly) S 44-17-40 E 257.61 feet to THE POINT AND PLACE OF BEGINNING, containing 10.261 acres, more or less, more or less, as shown as Phase 3A on survey entitled "LEWIS J. HILTON PROPERTY," prepared by Sam F. Williams, North Carolina Registered Land Survey (Registration Number L-1768), of Yarbrough - Williams & Associates, Inc., dated October 7, 1998, reference to said survey being made in aid of this description.

EXHIBIT C (continued)
LEGAL DESCRIPTION

Lying and being in Huntersville Township, Mecklenburg County, North Carolina, and more particularly described as follows:

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 E 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499; thence S 73-40-20 W 4,914.03 feet to an iron having North Carolina Grid Coordinates of N = 606,671.391 and E = 1,472,317.365, marking THE POINT AND PLACE OF BEGINNING, said iron lying on the western boundary of the property conveyed to J. Woodley Wallace, Sr., by instrument recorded in Deed Book 4219, Page 858, Mecklenburg County Public Registry; thence with the western boundary of the J. Woodley Wallace, Sr., property (now or formerly) the following four (4) courses and distances: (1) S 02-02-09 W 198.87 feet to an iron found; (2) S 45-20-53 W 746.29 feet to an iron set; (3) S 50-32-25 W 128.66 feet to an iron found; and (4) S 46-06-37 W 1,032.60 feet to an iron found marking the westernmost corner of the J. Woodley Wallace, Sr., property (now or formerly), the northernmost corner of the property conveyed to Clarence Honeycutt and Catherine M. Honeycutt by instrument recorded in Deed Book 1213, Page 601, Mecklenburg County Public Registry, and the easternmost corner of the property conveyed by to Roland J. Robinson and Wayne F. Robinson by instrument recorded in Deed Book 5159, Page 915, Mecklenburg County Public Registry; thence with the northern and western boundary of the Roland J. Robinson and Wayne F. Robinson property (now or formerly) the following two (2) courses and distances: (1) N 74-35-41 W 1,199.55 feet to an iron set; and (2) S 41-27-28 W 1,262.61 feet to an iron found; thence N 11-34-43 E 544.50 feet to an iron set; thence N 26-04-43 E 528.00 feet to an iron set; thence N 19-31-52 E 1,110.34 feet to an iron found; thence N 17-14-25 E 466.80 feet to an iron found (passing an iron found at 248.01 feet); thence S 82-02-18 E 2,327.44 feet to an iron found; thence S 82-23-43 E 219.84 feet to THE POINT AND PLACE OF BEGINNING; containing 88.766 acres, more or less, as shown on survey entitled "SILAS W. DAVIS PROPERTY," prepared by Yarbrough - Williams & Associates, Inc., dated September 21, 1998, reference to said survey being made in aid of this description.

LESS AND EXCEPT THE FOLLOWING TWO (2) TRACTS (TRACTS "H" AND "I")

TRACT "H"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 E 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 71-30-01 W 4,980.26 feet to an iron found having North Carolina Grid Coordinates of N = 606,472.676 and E = 1,472,310.301 (NAD 83); thence N 02-02-09 E 198.87 feet to an iron found; thence N 82-23-43 W 219.84 feet to an iron found; thence N 82-02-18 W 425.03 feet to a point marking the POINT AND PLACE OF BEGINNING; thence S 03-59-11 E 53.19 feet to a point; thence S 83-29-19 E 150.00 feet to a point; thence S 06-30-41 W 41.16 feet to a point; thence with the arc of a circular curve to the right having a radius of 225.24 feet for an arc distance of 102.53 feet (said curve being subtended by a chord bearing S 19-33-08 W 101.65 feet) to a point; thence S 32-35-36 W 81.93 feet to a point; thence S 85-34-05 W 248.63 feet to a point; thence S 76-09-03 W 402.36 feet to a point; thence N 79-29-47 W 502.36 feet to a point; thence N 62-06-35 W 868.25 feet to a point; thence N 10-04-46 E 57.94 feet to a point; thence with the arc of a circular curve to the right having a radius of 773.12 feet for

an arc distance of 90.65 feet (said curve being subtended by a chord bearing N 13-26-18 E 90.59 feet) to a point; thence S 82-02-18 E 401.71 feet to a point; thence S 72-45-04 E 516.61 feet to a point; thence S 79-29-47 E 207.05 feet to a point; thence N 01-11-53 E 93.20 feet to a point; thence S 82-02-18 E 708.89 feet to the POINT AND PLACE OF BEGINNING, containing 14.931 acres, more or less.

TRACT "I"

To find the point and place of beginning, commence at a G.P.S. Monument having North Carolina Grid Coordinates of N = 609,603.257 and E = 1,477,569.829 (NAD 83), thence S 19-06-47 E 1,641.29 feet to Geodetic Monument 018 FFH having North Carolina Grid Coordinates of N = 608,052.681 and E = 1,477,032.499 (NAD 83); thence S 71-30-01 W 4,980.26 feet to an iron found having North Carolina Grid Coordinates of N = 606,472.676 and E = 1,472,310.301 (NAD 83) marking the POINT AND PLACE OF BEGINNING; thence S 45-20-53 W 513.68 feet to a point; thence S 73-27-50 W 189.94 feet to a point; thence with the arc of a circular curve to the right having a radius of 294.21 feet for an arc distance of 290.48 feet (said curve being subtended by a chord bearing N 08-29-47 W 278.83 feet) to a point; thence N 87-54-45 E 173.51 feet to a point; thence N 32-35-36 E 60.40 feet to a point; thence N 57-24-24 W 151.05 feet to a point; thence N 31-57-13 E 97.23 feet to a point; thence S 82-58-17 E 315.81 feet to a point; thence N 67-01-05 E 162.21 feet to a point; thence S 02-02-09 W 107.75 feet to the POINT AND PLACE OF BEGINNING, containing 3.811 acres, more or less.

Both tracts as shown on survey entitled "Golf Course Boundary Map," prepared by Yarbrough - Williams & Associates, Inc., dated October 5, 1998, reference to said survey being made in aid of this description.



JUDITH A. GIBSON
REGISTER OF DEEDS , MECKLENBURG COUNTY
COUNTY & COURTS OFFICE BUILDING
720 EAST FOURTH STREET
CHARLOTTE NC 28202

Filed For Registration: 06/08/1999 01:50 PM
Book: RE 10530 Page: 272-300
Document No.: 1999101747
RESTR 29 PGS \$62.00
Recorder: DOROTHY MCCLELLAND

State of North Carolina, County of Mecklenburg

The foregoing certificate of LYN M. TAYLOR Notary is certified to be correct. This 8TH of June 1999

JUDITH A. GIBSON, REGISTER OF DEEDS By: Dorothy McClelland
Deputy/Assistant Register of Deeds



1999101747

Order: GVZ9HXG36
Address: 9829 Skybluff Cir
Order Date: 10-02-2021
Document not for resale
HomeWiseDocs

13637 0017

FILED ELECTRONICALLY
CABARRUS COUNTY NC
M. WAYNE NIXON

FILED	Aug 01, 2019
AT	12:02:00 PM
BOOK	13637
START PAGE	0017
END PAGE	0021
INSTRUMENT #	19675
EXCISE TAX	\$0.00

Prepared by and return to: Hope Derby Carmichael, P.O. Box 10669, Raleigh, NC 27605

STATE OF NORTH CAROLINA

AMENDMENT TO MASTER
DECLARATION OF COVENANTS,
CONDITIONS AND RESTRICTIONS
FOR SKYBROOK

COUNTY OF CABARRUS/MECKLENBURG

THIS AMENDMENT to the Master Declaration of Covenants, Conditions and Restrictions of Skybrook is made this 2nd day of July, 2019, by not less than seventy-five percent (75%) of the members of the Skybrook Homeowners Association, Inc. ("Association").

WITNESSETH:

WHEREAS, MVC, LLC ("Declarant"), a North Carolina limited liability company, was the owner of certain real property located in Cabarrus and Mecklenburg Counties, upon which the residential community more commonly known as Skybrook was developed; and

WHEREAS, in conjunction with the development of Skybrook, Declarant entered into a Land Development and Purchase Agreement dated April 26, 1999, related to the development of a golf course and related facilities within Skybrook, and recorded a Declaration of Restrictions, Covenants and Easements in Book 2562, Page 231 of the Cabarrus County Registry and in Book 10530, Page 272 of the Mecklenburg County Registry which subjected Skybrook to certain restrictions, covenants and easements in favor of the Golf Course Property, and subjected the Golf Course Property to certain easements benefitting Skybrook, which Declaration was thereafter amended and supplemented; and

WHEREAS, Declarant intended that the Golf Course Property would be, and the Golf Course Property is, an integral part of Skybrook; and

Submitted electronically by "Jordan Price Wall Gray Jones & Carlton"
in compliance with North Carolina statutes governing recordable documents
and the terms of the Memorandum of Understanding with
the Office of the Register of Deeds of Cabarrus County. - NCGS 47-14(a1)(5).

Order: GVZ9HXG36

Document not for resale
HomeWiseDocs

WHEREAS, Declarant recorded a Master Declaration of Covenants, Conditions and Restrictions of Skybrook in Book 2672, Page 119 of the Cabarrus County Registry and in Book 10806, Page 711 of the Mecklenburg County Registry; and

WHEREAS, on February 3, 2000, REES 34, L.L.C., the owner of the Golf Course Property at that time, recorded a Restrictive Covenant in Book 2782, Page 263 of the Cabarrus County Registry and in Book 11067, Page 326 of the Mecklenburg County Registry, which Restrictive Covenant provided that for fifteen (15) years following the date of recording, the Golf Course Property could be used only for the operation of a golf course facility, and related amenities such as a clubhouse, pro shop, and driving range; and

WHEREAS, by virtue of that deed recorded in Book 13441, Page 154 of the Cabarrus County Registry and in Book 33396, Page 860 of the Mecklenburg County Registry, Skybrook Golf, LLC ("SGLLC") acquired the Golf Course Property; and

WHEREAS, property values of owners within Skybrook are affected by the viability and appearance of the Golf Course Property, which in an intrinsic part of the Skybrook community; and

WHEREAS, in recognition of the benefit that continued maintenance and operation of the Golf Course Property provides to owners of lots within Skybrook, including, but not limited to protection of property values, the members of the Association and SGLLC desire to amend the Master Declaration to provide for an amenity assessment, subject to certain conditions described herein, and further benefits and conditions as stated in that certain Joint Use and Cost Sharing Agreement entered into by and between Skybrook Homeowners Association, Inc., a North Carolina non-profit corporation, and Skybrook Golf, LLC, a memorandum of which shall be recorded contemporaneously with this Amendment; and

WHEREAS, Article VIII, Section 4 of the Master Declaration provides that the Master Declaration may be amended by not less than seventy-five percent (75%) of the members of the Association;

WHEREAS, SGLLC and not less than seventy-five percent (75%) of the members of the Association desire that the Master Declaration be amended as set forth below;

NOW, THEREFORE, the undersigned do hereby declare as follows:

I. The Board of Directors is authorized to enter into that Joint Use and Cost Sharing Agreement which is attached hereto as **Exhibit A** and incorporated herein by reference.

II. The Board of Directors is authorized to enter into that Right of First Refusal Agreement which is attached hereto as **Exhibit B** and incorporated herein by reference.

III. As used herein the term "Skybrook Golf Club" or "Club" shall generally refer to the Golf Course Property and the amenities and facilities located thereon.

IV. The Master Declaration is amended as follows:

- A. Article V, Section 6 of the Master Declaration entitled "Covenant for Assessment" is amended by adding sub-section (d):

- (a) annual assessments or charges;
- (b) special assessments for capital improvements and/or other purposes;
- (c) individual special assessments levied against individual owners to reimburse the Association for extra costs for maintenance or repairs as set out in Article V, Section 12 of this Master Declaration; and
- (d) capital assessment.

The remainder of Article V, Section 6 remains unchanged.

- B. The first sentence of Article V, Section 7 of the Master Declaration is amended by adding the following bold, underlined language:

The assessments levied by the Association pursuant to Article V, Section 6, subsections (a) to (c) above shall be used exclusively for the purpose of promoting the beautification of SKYBROOK, the recreation, health, safety and welfare of the owners in SKYBROOK, the enforcement of this Master Declaration, any Supplementary Declaration, and the rules of the Association, and, in particular, the improvement and maintenance of the services and facilities of the Common Area, Limited Common Area, Landscape Easements, and Maintenance Easements. **The capital assessments shall be used for capital projects or maintenance of the grounds of Skybrook Golf Club. A "capital project" is a project that helps maintain or improve the Golf Course Property in the form of expansion, renovation, or replacement of an existing facility. The phrase "maintenance of the grounds" means irrigation, mowing, edging, planting, fertilizing and other landscaping associated with any portion of the Golf Course Property, including the greens.**

- C. The Master Declaration shall be amended by adding a new Article V, Section 19 entitled "Capital Assessment", as follows:

Section 19. Capital Assessment. The Board of Directors of the Association is authorized to impose an annual capital assessment to provide for capital improvements to, and maintenance of the grounds of, the Skybrook Golf Club. The maximum capital assessment shall be \$170.00 per year for lots that are adjacent to any Golf Club Property, and \$120.00 per year for all other lots.

- D. The Master Declaration shall be amended by adding a new Article X entitled "Club Membership", as follows:

Section 1. Rights of Use. Every owner shall be considered a Community Member of the Skybrook Golf Club, and, subject to the rules and regulations set forth by the Golf Club Owner, shall be entitled to:

- (a) full access to Clubhouse and use of Clubhouse dining facilities;
- (b) Fifty percent (50%) reduction in rental rate for any Clubhouse facilities below the rate such rental is offered to the general public;
- (c) Five percent (5%) discount on daily fee golf usage below the public rate;
- (d) Five percent (5%) discount on monthly/annual Golf Course memberships below the public rate;
- (e) Five percent (5%) discount on golf shop merchandise;
- (f) Five percent (5%) discount for food purchases in the clubhouse *does not include alcohol; and
- (g) 14 day advance tee time privileges for daily fee golf play.

5. Except as amended hereinabove, the remaining portions of the Master Declaration shall remain unchanged and in full effect. This amendment shall be effective from the date of its recording in the Cabarrus and Mecklenburg County Registries.

WHEREFORE, the President of the Association has hereunto affixed the corporate certification for the purpose of enacting the foregoing amendment.

[Certification Page Follows]

**CERTIFICATION OF VALIDITY OF AMENDMENT TO
MASTER DECLARATION OF COVENANTS, CONDITIONS
AND RESTRICTIONS FOR SKYBROOK**

By authority of the Board of Directors, the undersigned hereby certifies that the foregoing instrument has been duly approved, in writing, not less than seventy-five percent (75%) of the members of the Skybrook Homeowners Association, Inc. and is, therefore, a valid amendment to the existing Master Declaration of Covenants, Conditions and Restrictions of Skybrook.

SKYBROOK
HOMEOWNERS ASSOCIATION, INC.

By: Craig Sandhaus
President

STATE OF NORTH CAROLINA

ACKNOWLEDGMENT

COUNTY OF Cabarrus

I, Kelsie D. Petzel, a Notary Public of the County and State aforesaid, certify that Craig Sandhaus, personally came before me this day and acknowledged that he/she is President of the Skybrook Homeowners Association, Inc., a North Carolina non-profit corporation, and that by authority duly given and as the act of the corporation, he/she executed the foregoing instrument on behalf of the corporation.

Witness my hand and official stamp or seal, this 2nd day of July, 2019.

Kelsie D. Petzel
Notary Public

Kelsie D. Petzel
Printed Name

My commission expires: June 18, 2022

